CITY OF HARTFORD TREASURER'S OFFICE

MUNICIPAL EMPLOYEES' RETIREMENT FUND of the CITY of HARTFORD and CITY of HARTFORD OPEB TRUST

250 Constitution Plaza - 2nd Floor
HARTFORD, CONNECTICUT 06103
www.hartfordcitytreasurer.org

REQUEST FOR PROPOSALS ("RFP")
GENERAL INVESTMENT CONSULTANT

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SECTION I: INTRODUCTORY SECTION

The City Treasurer's Office of Hartford, Connecticut is soliciting proposals for a full-service professional investment consulting firm with broad investment expertise and service capabilities to work alongside with and assist operationally with the City Treasurer's Office. The City Treasurer's Office will be contracting with only one investment consulting firm to assist with the management of the MERF and OPEB.

1. INTRODUCTION & BACKGROUND

PLEASE NOTE: This section contains important background information regarding the City Treasurer's Office's Municipal Employees' Retirement Fund (the "MERF") the Other Post-Employment Benefits Trust Fund ("OPEB" or the "Trust") and the proposal process for selecting a General Investment Consultant.

The MERF is a contributory defined benefit local government retirement plan. Under the Charter and Code of the City of Hartford, the elected City Treasurer and City of Hartford Pension Commission (the "Pension Commission") are the fiduciaries of the MERF.

The City established the OPEB Committee to oversee the investment of Trust assets, and pursuant to The Hartford Charter, the City designated the duty of Trustee of the Trust to the elected City Treasurer. City Ordinance established the OPEB Committee, which consists of the members of the City Treasurer's Office, the Pension Commission, including the employee representative, together with the Mayor, and the Superintendent of Schools. The OPEB Committee and the Trustee are fiduciaries of the Trust.

The members of the Pension Commission and OPEB Committee, in conjunction with the elected City Treasurer determine policies and make investment decisions concerning the administrative and investment operations of the MERF and OPEB. The City Treasurer, staff, and general consultant will work with the Pension Commission on matters related to asset allocation, performance management, investment policy, investment manager searches and oversight, and other matters as may be required.

1.1 Asset Allocation:

Information relating to the MERF and OPEB, including investment policies, performance, staffing and results can be found on the City Treasurer's website:

https://www.hartfordcitytreasurer.org

As of December 31, 2023, the total portfolio values and target allocations are as follows:

MERF -- $1.1 billion

Asset Class	Target
U.S. Equity	25%
International Equity	16%
Fixed Income	19%
Private Equity	11%
Private Credit	8%
Private Real Estate	7%
Private Real Assets	6%
Hedge Funds	6%
Cash & Equivalents	2%

OPEB -- $24 million

Asset Class	Target
U.S. Equity	28%
Non-U.S. Equity	17%
Fixed Income	35%
Public Real Estate	10%
Public Real Assets	5%
Cash	5%

2. MINIMUM REQUIREMENTS

A proposing firm (Proposer) shall meet all of the following minimum qualifications to the City Treasurer's Office's satisfaction to be given further consideration:

- The Proposer shall have been in business for at least ten (10) years providing general consulting services.
- The senior members of the Proposer (those in top leadership positions) shall have worked together for at least three (3) years.
- The Proposer shall not subcontract the management of the account, and all personnel responsible for the account must be employees of the Proposer.
- The Proposer shall currently serve as consultant for at least five public pension funds each with over $1.5 billion in assets.
- The primary consultant assigned to the MERF and OPEB relationship shall have a minimum of five (5) years of consulting experience with defined benefit public pension plans and have been employed by the Proposer for at least three (3) years.
- The Proposer shall serve as a fiduciary to the MERF and OPEB and shall acknowledge in writing its compliance with the MERF's and OPEB's investment policies and guidelines.
- The Proposer shall not have existing or potential material conflicts of interests to the City Treasurer's Office and staff, the Pension Commission, the OPEB Committee, their actuary, auditor, investment managers, or other service providers.
- Proposer shall agree to execute a contract similar in form to that presented in **Appendix E, Form of Contract.**
- The Proposer shall maintain a current registration with the Securities and Exchange Commission as an Advisor under the Investment Advisory Act of 1940 as amended.
- The Proposer shall carry the following minimum insurance coverage or must have applied for it by the RFP submission date:

a. General Liability	Min	$ 5,000,000
b. Errors and Omissions (Professional Liability)	Min	$ 5,000,000
c. Fiduciary Liability	Min	$ 1,000,000
d. Workers' Compensation and Employer's Liability	Min	$ 1,000,000
e. Cybersecurity Coverage	Min	$ 1,000,000

The City Treasurer's Office reserves the right to require a higher insurance coverage.

All minimum qualifications shall be met as of **March 15, 2024 – 5:00 p.m. Eastern Time**. **("ET")**.

The Proposer shall complete the ***Minimum Qualification Certification (Appendix A)*** substantiating that the Proposer satisfies all minimum qualifications and requirements.

Failure to satisfy each of the above delineated minimum qualifications shall result in the immediate rejection of the proposal.

3. SCOPE OF SERVICES

Under the direction of the City Treasurer and her designated staff, the consultant shall provide comprehensive full-retainer, general investment consulting advice and services.

Specifically, the successful firm will demonstrate superior experience and capability in the areas of investment policy development and compliance, investment manager research and selection, asset allocation, risk management and Trustee education.

The following are examples of the duties the City Treasurer's Office expects the general investment consultant to perform.

3.1 Policy Duties:

- Annually, review the Investment Policy Statements ("IPS")
- Recommend and assist in drafting changes to the IPS;
- Assist in establishing and/or revising asset class level manager guidelines and restrictions;
- Annually, review and recommend appropriate benchmark revisions;
- Annually, provide capital market assumptions and expected returns to model asset allocation updates;
- Assist in establishing systems and procedures for monitoring policies on an ongoing basis;
- Provide recommendations concerning long-term investment policy, investment objectives and strategy, including manager continuation policies and rebalancing policies;
- Provide recommendations concerning investment goals, policies, guidelines and procedures for private and publicly managed portfolios;
- Provide recommendations concerning risk management policies, and other related issues;
- Provide compliance monitoring.

3.2 Asset Allocation & Total Portfolio Duties:

- Conduct periodic asset allocation and asset-liability studies;
- Conduct annual asset allocation reviews and provide corresponding asset allocation recommendations addressing relevant risk and return parameters;
- Provide asset class research, analysis, and recommendations;
- Provide an annual liquidity review based on portfolio investment allocations and projected cash flows;
- Provide recommendations concerning investment manager allocation and structure;
- Provide recommendations concerning risk management strategies;
- Advise on the allocation of active and passive strategies;
- Provide access to analytical software and tools (as available)
- Provide recommendations concerning securities lending strategies, and periodic evaluation of and compliance monitoring for the MERF's securities lending program;
- Provide periodic evaluation of and recommendations concerning custodial arrangements, specifically custodian search and review services;
- Provide investment professional fee negotiation services;
- Provide recommendations concerning portfolio rebalancing and brokerage issues, including directed brokerage, and transition manager services.

3.3 Investment Manager Oversight Duties:

- Assist in the development of RFPs, RFQs, RFIs and any other data gathering requirements for competitive search processes;
- Undertake initial screening of responses in connection with any search process;
- Collect and periodically make available investment manager information from your database and other sources including information relating to referrals from the City Treasurer and her staff;

- Prepare due diligence materials to support any manager search processes and include information consistent with pre-arranged client specifications;

- Support searches for investment managers by providing investment manager selection services and recommendations;

- Participate in manager interviews as required/requested;

- Provide ongoing due diligence on prospective managers generally and in response to ad hoc inquiries;

- Assist in establishing and/or revising manager fee schedules;

- Assist in establishing and/or revising manager benchmarks;

- Assist in establishing and/or revising manager guidelines;

- Support and provide on-going monitoring of investment managers performance and operations;

- Provide on-going monitoring of investment manager performance reporting standards compliance;

- Provide access to analytical software and tools;

- Monitor manager fees and provide comparative peer metrics;

- Monitor trading programs and transaction costs.

3.4 Performance Reporting and Analysis Duties:

- Provide performance reporting on a monthly and quarterly basis and on an as needed basis;

- Compare total portfolio investment performance to custom policy benchmarks (see above);

- Include investment analytics and attribution analyses at the manager, asset class and total fund levels in quarterly reporting;

- Provide ongoing benchmark evaluation, implementation, and analysis;

- Provide access to performance and attribution analytical software, if any;

- Provide ad hoc reporting, as requested by Treasurer and staff.

3.5 Training, Education and Information:

- Participate in ad hoc workshops on specific issues designated by the City Treasurer;
- Develop and provide access to educational materials and investment education on a periodic basis or as requested;
- Provide access to all firm research, including white papers and research staff;
- Report, in a timely manner, any significant changes in the firm's organizational structure and staffing.

3.6 Diversity, Equity and Inclusion:

- Develop and maintain a database of diverse managers for inclusion and identification in all searches conducted for the City Treasurer's Office and monitor and report on City Treasurer's Office's investment manager diversity on an ongoing basis.

3.7 Other:

- Undertake special projects at the City Treasurer's request;
- Provide other services as requested.
- Report, in a timely manner, any significant changes in the firm's organizational structure and in the staffing for the MERF and OPEB accounts.

4. PROPOSAL CONTENTS AND PROCESSING:

PROPOSAL COMPLETION AND SUBMISSION PROCEDURES

Please complete all questions in the order that they are presented in this RFP. Include all section and question numbers in your responses. Any additional comments or information may be provided in Section II, Part B.

The individual(s) who is (are) authorized to bind the Proposer contractually shall sign a cover letter, which will be considered an integral part of the proposal. This cover letter shall indicate the signer is so authorized**,** and shall indicate the title or position that the signer holds in the Proposer's firm. **An unsigned cover letter shall cause the proposal to be rejected.** The cover letter shall contain a statement that the firm acknowledges that all documents submitted pursuant to this request for proposal process will become a matter of public record.

4.1 The cover letter shall also contain the following:

- The Proposer's name, address, telephone and facsimile numbers, and email address;
- The Proposer's Federal Employer Identification Number and Corporate Identification Number, if applicable;
- The name, title or position, and telephone number and email address of the individual signing the cover letter;
- A statement indicating the signature is authorized to bind the Proposer contractually;
- The name, title or position, and telephone number and email address of the primary contact and/or account administrator, if different from the individual signing the cover letter;
- A statement to the effect that the proposal is a firm and irrevocable offer, good for five years with two one-year extension options;
- A statement expressing the Proposer's willingness to perform the services as described in this RFP;
- A statement expressing the Proposer's availability of staff and other required resources for performing all services and providing all deliverables within specified time frames;
- A signed and completed copy of **Appendix B, Representations and Warranties**.

4.2 Proposal Requirements

The City Treasurer's Office requests that response to this RFP be as succinct as possible while still providing sufficient information for evaluation of the respondent's qualifications, approach and ability to meet the City Treasurer's Office needs in a responsive and cost-efficient manner.

4.3 Restrictions

- **Respondent Communications**

  Questions and requests for clarification relevant to this RFP shall be submitted in writing during the time frame defined above. Assistance will be available to firms seeking clarification to questions or comments stated in this RFP.

- **Contact with Pension Commission and OPEB Committee Members is Prohibited**

  During the Consultant search, a prospective provider of such services shall not have any contact with members of the Pension Commission and OPEB Committee. To ensure fairness, after the RFP is issued, the Pension Commission and OPEB Committee shall be prohibited from responding to any inquiries or discussions with interested consulting firms where there is a potential for bias or favoritism or appearance of impropriety due to personal or potential conflict of interest.

  Monthly Pension Commission and OPEB Committee meetings are excluded from this restriction.

  After the Q&A period, City Treasurer and staff will also be prohibited from responding to any inquiries or discussions with interested firms where there is a potential for bias or favoritism or appearance of impropriety due to personal or potential conflict of interest.

  Contact with the Pension Commission and OPEB Committee or staff within the prohibited period may lead to disqualification.

4.4 Certificate of Independence

Finalist candidates to this RFP will be required to file with the City Treasurer a Certificate of Independence indicating whether or not the firm or any individuals with the firm have a possible conflict of interest or any relationship with the Pension Commission and OPEB Committee members or certain City Treasurer's Office staff.

4.5 Proposal Submission and Search Schedule*

Proposals shall be received no later than **March 15, 2024 at 5 p.m**. **Eastern Time (subject to change)**

Any proposals received after this date and time will be rejected. The City Treasurer's Office does not accept responsibility for receipt of any proposal that is improperly labeled, lost**,** or delivered late. Once received by the City Treasurer's Office, a proposal cannot be altered or replaced.

Four original paper copies of the proposal, and one electronic copy, all fully signed and sealed, shall be submitted to:

Ms. Chay Iv, Chief Administrative Officer
City of Hartford, Office of the City Treasurer
250 Constitution Plaza
2nd floor
Hartford, CT 06103

One full electronic copy in PDF format shall be emailed to:

info@hartfordcitytreasurer.org

Faxed copies will not be accepted.

4.6 Search Schedule (dates subject to change):

February 9, 2024	RFP distributed to firms
February 23, 2024	Deadline for Question submissions via e-mail, 5:00 p.m. Eastern Time
March 15, 2024	Deadline for submission of Proposal 5:00 p.m. Eastern Time
April 12, 2024	Determination and selection of finalists for presentation
By May 1, 2024	Site Visits
By May 17, 2024	Interview of finalists
May 24, 2024	Selection of Investment Consultant
By June 30, 2024	Contract negotiation and execution before commencement of services.

4.7 Inquiries -- Submission of Written Questions

Should a firm need further clarification on the questions or specifications contained in the RFP, the Proposer may email questions to info@hartfordcitytreasurer.org by February 23, 2024 at 5:00 p.m. Eastern Time. The subject line of the email shall show the name of your firm and "Consultant RFP Question". Responses to questions will be posted on our website, www.hartfordcitytreasurer.org.

4.8 Proposal Applicability

To allow sufficient time for contract negotiation, all prices and conditions stated in the proposal must be firm for a period of 180 days from the deadline for submission of proposals.

4.9 Governing Law

This procurement and any agreement with Proposers that may result shall be governed by the laws of the State of Connecticut, supplemented by any ordinances and regulations of the City of Hartford. Submission of a proposal constitutes acceptance of this condition.

5. PROPOSAL EVALUATION CRITERIA & PROCESS

Fees and compensation will be an important factor in the evaluation of investment consulting proposals. However,the City Treasurer's Office, the OPEB Committee and the Pension Commission are not required to award the contract to the lowest cost bidder. Selection of finalists and determinations of compliance with minimum qualifications is solely and exclusively within the judgment of the Pension Commission and OPEB Committee based on the recommendation of the City Treasurer**,** and may be made solely on the basis of their evaluation of a candidate's suitability.

The following is a summary of some of the general considerations that will be used to determine the firms that will be selected as finalists:

- Quality and objectivity of investment advice
- Understanding of the needs of the MERF and OPEB & ability to deliver
- Firm experience & client relevant experience
- Analytical tools, research & process
- Firm personnel & proposed consultant team
- Client & industry feedback
- Firm's diversity, equity and inclusion ("DEI") policies and related materials

SECTION II: CONTENTS OF PROPOSAL

PART A: REQUESTED MATERIALS & ADDITIONAL INFORMATION

Please send the following documents, along with the copy of your written response by courier, to Ms. Chay Iv at 250 Constitution Plaza, Hartford, CT 06103. Any documents that can be sent in electronic format should be sent to chay.iv@hartford.gov.

1. A corporate organization chart (showing the consulting firm, parent and all affiliates and subsidiaries);
2. A current company annual report;
3. Current firm policies related to conflicts of interest;
4. A copy of the firm's mission statement and code of ethics;
5. Most recently filed SEC Form ADV, Parts I and II;
6. A representative sample of the firm's due diligence reports on investment managers for public securities (equity, bonds);
7. Two copies of the firm's performance reporting. One in executive summary format and the other with full analytical details;
8. A detailed description of the composition of the peer universe to which the MERF and the OPEB would be compared;
9. A copy of the firm's standard marketing brochure or other document that describes the firm's processes;
10. Any other information you feel would be necessary to gain a complete understanding of the firm or the services it provides;
11. A report showing the ethnic composition of the firm's workforce (see **Appendix D** for format), as well as the minority and women-owned businesses with which the firm does business;
12. Please provide a fee quote for the services requested in Section II above by completing the form in **Appendix C**, Pension Consultant Fee Schedule;
13. Provide evidence of the following insurance coverage:

    a. Professional liability/errors and omissions liability insurance.
    b. Commercial general liability insurance
    c. Employee dishonesty, third party fidelity bond
    d. Workers' compensation and employer's liability
    e. Cybersecurity

Section II outlines information that is to be included in your proposal. The information requested shall be provided in the prescribed numbered format. All questions shall be repeated in their entirety before each of the answers is provided. Responses that deviate materially from the prescribed format may lead to the rejection of the proposal.

When completing the firm's response to this proposal, please be as clear, accurate, and complete as possible in your responses. Providing incomplete or misleading data may lead to disqualification of the proposal and elimination of the firm from the search process.

PART B: QUESTIONNAIRE

ORGANIZATIONAL, PERSONNEL AND INDEPENDENCE

1. Please provide the following contact information:

   Name:
   Title:
   Address:
   Email address:
   Phone number:
   Facsimile number:
   Firm's Internet (www) address:

2. Please provide the following firm information:
   a. An overview of the firm, including its history and any special expertise or experiences that would be relevant to the City Treasurer's Office.
   b. A description of the structure of the firm, which includes the parent company and any affiliated companies and/or joint ventures. If any near-term changes to the firm's corporate or organizational structure are anticipated, please also note these.
   c. List the ten largest owners of the firm (from largest to smallest with respect to ownership) and their ownership percentages. Please include individuals and all other entities.
   d. List the firm's voting ownership by listing the percentage voting interest owned by the five largest owners.

3. Describe any significant ownership changes, restructurings, or personnel reorganizations over the past three years. Are any significant organizational changes anticipated during the next one to five years? If yes, please describe.

4. Is your firm considered a diverse-owned, diverse-led, minority or woman-owned, disabled veterans or similarly structured or emerging investment entity?

5. Please list all office locations and the number of individuals working in each office. Please specify which office would primarily serve the City Treasurer's Office relationship.

6. For the calendar year ended December 31, 2023, please list all services provided by the firm, the nature thereof, and the percentage of total income that such services represent. If the firm has an ultimate parent company, please list the percentage of total income that the firm's services represent to the ultimate parent company.

7. Does the firm or does an affiliate of the firm serve as an investment manager for clients or accept fees from investment managers? If yes, please fully describe the nature of this activity.

8. Does the firm or does an affiliate of the firm act as a securities broker-dealer or introducing broker? If yes, please fully describe the nature of this activity.

9. Does your firm, its principals, or any affiliate, own any part of a money management firm, broker-dealer or other organization that sell services to institutional investors and/or SEC registered investment advisors? If so, identify the firms and describe the relationship in detail. Explain how conflicts of interest between that function, your research function, and your consulting function are prevented.

10. If your firm provides Outsourced CIO services, please provide the extent of these services in dollars and percent of revenues. Also please discuss how these amounts have changed over the last five years.

11. Explain any potential for conflict your firm would have in servicing the Plan. Conflict may include consulting relationships, brokerage relationships, money management activities, fees relationships with money managers, soft dollars, etc. What procedures are in place that would mitigate or eliminate potential conflicts of interest?

12. Please explain in detail any potential conflicts of interest that are currently created by the firm's representation of the City Treasurer's Office. Does your firm, its principals, or any affiliate, own any part of a money management firm, broker-dealer or other organization that sell services to institutional investors and/or SEC registered investment advisors? If so, identify the firms and describe the relationship in detail. Explain how conflicts of interest between that function, your research function, and your consulting function are prevented.

13. Please list the total number of professionals in the firm in each of the following categories for the past five years, as of December 31. Each person should be assigned to only one category.

	2019	2020	2021	2022	2023
Lead Consultants					
Consultants Analysts					
Private Equity/Alternative Consultant					
Analysts					
Firm Senior Management					
Economists					
Marketing/Sales					
IT/Analytics/Systems					
Existing client services					
Total Professional staff (above)					

14. Please list the total number of departures of professionals from the firm in each of the following categories for the past five years, as of December 31. Each person should be assigned to only one category.

	2019	2020	2021	2022	2023
Lead Consultants					
Consultants Analysts					
Private Equity/Alternative Consultant					
Analysts					
Firm Senior Management					
Economists					
Marketing/Sales					
IT/Analytics/Systems					
Existing client services					
Total Professional staff (above)					

15. Within the last five (5) years, has the firm, its principal or any affiliate ever: (a) been the focal point of a non-routine Securities and Exchange Commission (SEC) inquiry or investigation or similar inquiry or investigation from any similar federal, state, or self-regulatory body or organization, (b) been a party to any litigation concerning fiduciary responsibility or any other investment related matters, or (c) submitted a claim to your errors & omissions, fiduciary liability and/or fidelity bond insurance carrier(s) or (d) been sanctioned or fined by any regulatory agency? If yes to any, please provide details.

16. Within the last five (5) years, has the firm or an officer principal been involved in litigation or other legal proceedings related to the firm's investment consulting assignments? If so, please provide an explanation and indicate the status or disposition.

17. List substantive issues raised by independent auditors in your Form ADV, SAS 70/ SSAE 16, SOC1/SOC2 and issues published in your annual audited financial statements or Form 10K (if applicable). Provide a copy of the most recent Form ADV, annual report, Form 10-Q (if applicable) and SAS 70 / SSAE 16 SOC1/SOC2 and label appropriately.

18. Please describe the level of coverage for fiduciary liability insurance, errors and omissions insurance, professional liability insurance, and cybersecurity insurance. List the insurance carrier(s) supplying the coverage.

19. Describe anti-fraud and cybersecurity measures that are currently in place to ensure the integrity of the firm's database, transfer and storage of electronic information, and the protection from unauthorized access.

20. Who is the firm's auditor? Has the firm changed auditors in the past three years? If so, explain.

21. At December 31, 2023, how many professionals were assigned to investment manager research, selection, and monitoring? Please provide summary information about the investment consulting professionals at your firm by sector, as laid out in the following table:

Group/Role	Number of Professionals	Average Experience (yrs.)	Average Tenure with the Firm (yrs.)
Public Equity			
Fixed Income			
Hedge Fund			
Commodities			
Real Estate			
Real Assets			
Private Equity			
Private Credit			
Other (please specify)			
Total			

22. Please provide a brief description of the firm's compensation arrangements for professional staff, including any incentive bonuses, sharing of profits and/or equity ownership. Specific compensation amounts need not be presented.

23. When hiring consultants and analysts, what are the qualifications, skills, and experiences that the firm generally requires?

24. Please provide a biography of each proposed personnel to be assigned to the City Treasurer's Office, including the following information: Please explain how the team dedicated to the City Treasurer's Office would function.

- Name:
- Title:
- Role:
- Total years of institutional investment experience:
- Total years of institutional investment consulting experience:
- Total years with the firm:
- Educational qualifications:
- Total current number of assigned accounts (Lead):
- Total current number of assigned accounts (Support):

- Name, plan type, length of relationship, and size of each assigned client account: Role for each assigned account (ex. Lead Consultant, Support Consultant)

25. Please provide three references along with the corresponding contact information from public defined benefit pension fund clients that are similar in size to the MERF.

26. Please list the number of institutional clients and assets the firm has serviced in a **full retainer** capacity over the last five years. (Performance evaluation services and/or project-based work alone are not considered full-retainer investment consulting relationships.) Please provide calendar year-end (December 31) data for each year.

	2019	**2020**	**2021**	**2022**	**2023**
Number of clients					
Asset under advisement					

27. Please list the number of full-retainer clients served by the firm (by asset size and by type) as of December 31, 2023:

	Less than $1 billion	$1 billion to $5 billion	$5 billion to $15 billion	$15 billion to $50 billion	Over $50 billion
Public Employees Retirement					
Union/Taft-Hartley					
Corporate pension					
Endowment/Foundations					
Foundation					
Hospital/ Insurance/other					

SERVICE CAPABILITY AND PROCESS

28. Please explain how the team dedicated to the City Treasurer's Office would function.

29. Please provide information (contact information, date of acquisition, assets, type of services provided) for 3 references of current clients of similar size.

30. Please provide the names of five (5) clients lost within the last five years. Please also provide address, contact information, and reasons for each loss.

31. Please describe the capabilities and differentiating features of the firm's manager research database. Is the database proprietary or purchased? Are managers charged fees for inclusion? How many managers are tracked? What characteristics are used? How is the data input and verified?

32. Please describe the firm's manager search process and how managers are evaluated. How are managers initially screened? What criteria are emphasized in the latter stages of a search? How many searches did the firm perform within the last 12 months?

33. Please describe your firm's overall philosophy and approach to providing advisory/consulting services and if this philosophy and/or approach have changed throughout your firm's history.

34. Please provide your proposed asset allocation recommendations for each of the MERF and the OPEB.

35. Is there a limit on the number of joint City Treasurer's Office and Investment Advisor on-site due diligence visits in any given year to potential investment candidates?

36. Will representatives of your firm participate in the review and negotiation of issues and terms relating to potential transactions and related terms included in the transaction documents?

37. Please describe your firm's investment sourcing process and how do you ensure your firm has broad coverage of the manager universe and conducting due diligence on only the best opportunities for your clients?

38. Please indicate if your firm can provide summary reports of potential investment opportunities to the City Treasurer's Office before determining if such opportunity is a candidate for full, comprehensive due diligence.

39. Please describe in detail how your firm would further develop the City Treasurer and staff's investment sourcing and due diligence capabilities. If hired, would your firm be willing to provide to the City Treasurer's Office your firm's due diligence questionnaires for educational purposes, and for both recommended and non-recommended investments?

40. Please describe the firm's experience and capability for performing asset allocation studies. How frequently does the firm recommend a client conduct such a study? What type of follow-ups or reviews does the firm perform in between studies?

41. Discuss in detail the theory and methodology of the asset allocation models the firm employs. How does the firm develop input data for the models? How are the liability structure, funding level, and changes in the contribution level incorporated? What asset classes are included? What measures of risk are incorporated? Please also discuss the firm's capability for analyzing liabilities.

42. Please describe the firm's experience and capability for providing policy guideline development and review for a defined benefit plan and OPEB trust. What specifically would the firm do to develop or review the policies of the City Treasurer's Office? How frequently would this process occur? What client-specific factors would be considered?

43. Please discuss what, if any, risk management tools your firm utilizes to evaluate potential investment recommendations in conjunction with a client's existing portfolio.

SYSTEMS & ANALYTICAL TOOLS

44. Do clients have access to an updated web portal for access to the firm's reports? Please describe the nature of this access and the types of reports made available. How frequently is information on this portal updated?

45. Please list peer comparison databases used and/or made available to clients.

46. Please describe the firm's technology capabilities. How does the firm use the technology to share and leverage information resources across the organization?

47. Does the firm provide any analytical tools to clients? If yes, please describe them in detail.

48. Does the firm outsource any aspect of its investment advisory/consulting services such as performance, calculation and attribution or other services? If so, please describe.

49. Please describe the capabilities and differentiating features of the firm's performance measurement database(s). Is the database(s) proprietary or purchased? How is data input and verified? Can performance information be accessed online?

50. Please describe the firm's experience and capability for monitoring an investment manager's compliance with client guidelines and policies.

51. Please describe the firm's process for monitoring and reporting on market trends. Include the firm's capabilities for reporting and tracking global trends and influences. How frequently does the firm review its capital markets expectations?

52. Does the firm develop investment research reports for its clients? If yes, on what types of investment topics? Who performs the research? How frequently are reports issued? What sources of information are used to collect data?

53. Please describe the firm's experience and capabilities for providing education to public pension plan Trustees and staff.

54. In general, what key strengths or competitive advantages does the firm possess that generates superior performance and service to the City Treasurer's Office?

55. Please describe your transition process if your firm was selected. How long do you anticipate the process will take? What are some of the obstacles that you have encountered in the past and how did you overcome them?

56. Please suggest a methodology for measuring your firm's performance as an investment consultant.

DIVERSITY, EQUITY AND INCLUSION

57. Please describe your DEI goals and indicate when you adopted them. Specifically describe the process by which you will satisfy your DEI employment and contracting goals. Include the policies and procedures for outreach and recruitment of minorities (highlighting underserved groups) and women as employees and subcontractors.

58. Please list, as a separate document, the outside services your company utilizes under your DEI goals. The list should include the name of the firm, the service provided, and the approximate amounts paid. Those firms that are MBE or WBE should be identified as such. The report should have a summary indicating the grand total, the MBE total, the WBE total, and the MBE and WBE percentages of the total.

59. Please describe how your firm will be able to utilize Minority and women-owned businesses located in the Hartford market area, if possible. (If not in the Hartford area, in the area of your home office.) In addition, please complete **Appendix D**, Breakdown of Work Force by Ethnicity.

FEES

60. Does the firm and/or any affiliates accept soft dollars as a method of payment for services provided? Please explain.

61. Will your firm agree to two one-year options at the end of the five-year contract? If yes, please provide a fee quote for the two one-year options.

62. Will your firm agree that your firm will not propose an increase in the fee structure for the next five years?

63. Will your firm confirm that the fees proposed for the City Treasurer's Office are the lowest charged for essentially similar services offered to clients similar to the City Treasurer's Office?

Appendix A

MINIMUM QUALIFICATIONS CERTIFICATION

_____
Proposer Firm Name

The Proposer shall substantiate that the firm satisfies **all** of the minimum qualifications stated in Section I of this RFP to be given further consideration. The statement shall contain sufficient information as prescribed to assure City Treasurer's Office of its accuracy. Failure to satisfy each of the minimum qualifications, based on City Treasurer's Office's sole judgment, will result in the immediate rejection of the proposal.

The signature of the authorized representative of the Proposer represents and warrants that the **proposer has met all of the minimum qualifications**.

1. The Proposer is a registered investment advisor under the Investment Advisors Act of 1940 and must be a fiduciary to the MERF and OPEB.

2. The Proposer has been in business for at least ten (10) years providing general consultant services.

   Number of years firm has been in business:_____

3. The Proposer has consulted at least five (5) public pension fund clients each with total plan assets of at least $1.5 billion.

   Name(s) of client(s):_____

4. The senior members of the Proposer have worked together for at least three (3) years.

   Number of years:_____

5. The Proposer is directly responsible for the management of the account, and all personnel responsible for the account are employees of the firm.

6. The primary consultant assigned to the City Treasurer's Office relationship has a minimum of five (5) years of consulting experience with defined benefit public pension plans and has been employed by the Proposer for at least three (3) years.

   Name of primary consultant: _____

   Number of years of experience with public pension plans:_____

7. The Proposer does not have existing or potential material conflict of interests with the City Treasurer's Office, staff, actuary, auditor, investment managers, or other consultants.

8. The Proposer carries the minimum insurance coverage as stated in Section 3 (Minimum Requirements**)** as of April 3, 2024**.**

_____ _____
Authorized Signature Print Name

_____ _____
Title Date

REPRESENTATIONS AND WARRANTIES

All Proposers are required to submit this executed copy as an attachment to the cover letter of the RFP.

A. The Proposer warrants that it maintains an errors and omissions insurance policy providing not less than $5 million of coverage for negligent acts or omissions, a copy of which will be submitted to the City Treasurer upon selection, and that such coverage will be applicable to the firm's actions, responsibilities and obligations contemplated by this RFP.

B. The Proposer warrants that it accepts a fiduciary responsibility with respect to the MERF and OPEB and shall discharge its duties with respect to the MERF and OPEB in accordance with the requirements of the City of Hartford Charter and Municipal Code*, with care, skill, prudence and diligence, and in compliance with any other applicable laws. Further, the firm acknowledges that the expertise and experience of the City Treasurer's Office, the Pension Commission, and the OPEB Committee with respect to the MERF and OPEB are such that they will be relying on the expertise and experience of the firm in those matters related to the MERF and OPEB as to which services are to be provided by the firm.

C. The Proposer warrants that it has completed, obtained, and performed all registrations, filings, approvals, authorizations, consents or examinations required by any government, governmental authority, or other regulatory authority with respect to all actions, responsibilities, and obligations contemplated by this RFP.

D. The Proposer warrants that it meets all of the minimum criteria applicable to the firm under this RFP.

E. The Proposer warrants that the person submitting this Proposal and executing these Representations and Warranties is duly authorized by the firm to submit this Proposal and execute these Representations and Warranties.

Name of Proposer	Date
Signature	Title

City of _____, State of _____

Subscribed and sworn to before me this _____day of _____, 2024.

_____(SEAL)

Notary Public

My commission expires: _____

CONSULTANT FEE SCHEDULE

Proposers shall submit their fees for investment consulting services in the format prescribed below. The proposed fees shall include all costs and expenses for providing services to the City Treasurer's Office as described in this RFP.

Proposers shall complete both Sections A and B of this fee schedule. The City Treasurer's Office reserves the right to compensate the successful firm for services using either the bundled fee as contained in Section A below, or the unbundled fees contained in Section B below. The method of payment will be determined by the Agreement, and only one payment method will be employed at any given time.

SECTION A – BUNDLED FEES: Proposers shall submit an annual fee for all services as described in Section I, part II (Purpose and Requested Services) of this RFP.

Year 1 $_____
Year 2 $ _____
Year 3 $ _____
Year 4 $_____
Year 5 $_____

Two **Two-Year** Options:
Years 1-2 $ _____
Years 3-4 $_____

Total $ _____

SECTION B – UNBUNDLED FEES: Please refer to Section I, Part 2 (Scope of Services) of this RFP for a complete description of services required of the successful contractor.

General Consulting $ ---------- (annually)

Asset Allocation
(investment policy, portfolio mix
and investment strategy) $----------(annually)

Manager and other Fiduciary
Search and Selection $ (per occurrence) $----------(annually)

Performance Measurement
and Reporting $----------(monthly/quarterly)

Travel Expenses $----------(per occurrence)

Special Projects $ ----------(per occurrence)

Other $----------

Name of Proposer **Signature** **Title**

BREAKDOWN OF WORK FORCE BY ETHNICITY

Number of Employees										
	Overall	Male					Female			
JOB CATEGORIES	total (sum of Column B thru K A	White (not of Hispanic Origin) B	Black (not of Hispanic Origin) C	Hispanic D	Asian or Pacific Islander E	American Indian or Alaskan Native F	White (not of Hispanic Origin) G	Black (not of Hispanic Origin) H	Hispanic I Asian or Pacific Islander J	American Indian or Alaskan Native K
Officials and Managers										
Professionals										
Technicians										
Sales Workers										
Office and Clerical										
Total										

Percentage of Employees										
	Overall	Male					Female			
JOB CATEGORIES	total (sum of Column B thru K A	White (not of Hispanic Origin) B	Black (not of Hispanic Origin) C	Hispanic D	Asian or Pacific Islander E	American Indian or Alaskan Native F	White (not of Hispanic Origin) G	Black (not of Hispanic Origin) H	Hispanic I Asian or Pacific Islander J	American Indian or Alaskan Native K
Officials and Managers										
Professionals										
Technicians										
Sales Workers										
Office and Clerical										
Total										

FORM OF CONTRACT

PROPOSED CONTRACT FOR PROFESSIONAL SERVICES - MERF

This Agreement is made effective as of the day of by and between , CITY TREASURER of the City of Hartford (hereinafter the "Client") and Secretary to the City's Pension Commission (hereinafter the "Pension Commission") *on behalf of* the City of Hartford Municipal Employees' Retirement Fund (hereinafter the "MERF"), duly authorized under the authority of the Charter of the City of Hartford, and , with a principal office and place of business at (hereinafter the "Consultant").

WITNESSETH

WHEREAS, The Commission has adopted an investment program, as more particularly delineated in the Funding and Investment Policy Statement for the MERF, dated , as amended through , attached hereto and made a part hereof as Exhibit A (hereinafter the "Policy Statement"); and

WHEREAS, The Commission has further authorized Client to engage Consultant to assist Client and the Commission in structuring this program and in identifying, reviewing, recommending potential investments by the MERF; and

WHEREAS, In response to a Request For Proposals, Consultant has proposed to provide such services for a total of $ per year;

NOW THEREFORE:

In consideration of the mutual representations and covenants herein contained, and intending to be legally bound hereby, the parties hereto hereby mutually agree as follows:

1. Recitals:

   The parties agree that the foregoing recitals are true and correct and are hereby incorporated in and made a part of this Agreement.

2. Appointment: Scope of Services:

   Client hereby appoints Consultant, and Consultant hereby accepts its appointment, as Client's primary investment advisor for the MERF's program, subject to and in accordance with the terms of this Agreement. The services to be provided by Consultant hereunder

shall consist of both Basic and, if requested by Client, Additional Services. The Basic Services to be provided by Consultant hereunder shall consist of performing all of those activities necessary or appropriate for Consultant to perform as the MERF's primary investment advisor for its investment program as contemplated by the Policy Statement. These services shall include, but not necessarily be limited to:

2.1 Policy Duties:

(i) Annually, review the Investment Policy Statements ("IPS")

(ii) Recommend and assist in drafting changes to the IPS;

(iii) Assist in establishing and/or revising asset class level manager guidelines and restrictions;

(iv) Annually, review and recommend appropriate benchmark revisions;

(v) Annually, provide capital market assumptions and expected returns to model asset allocation updates;

(vi) Assist in establishing systems and procedures for monitoring policies on an ongoing basis;

(vii) Provide recommendations concerning long-term investment policy, investment objectives and strategy, including manager continuation policies and rebalancing policies;

(viii) Provide recommendations concerning investment goals, policies, guidelines and procedures for private and publicly managed portfolios;

(ix) Provide recommendations concerning risk management policies, and other related issues;

(x) Provide compliance monitoring.

2.2 Asset Allocation & Total Portfolio Duties:

(i) Conduct periodic asset allocation and asset-liability studies;

(ii) Conduct annual asset allocation reviews and provide corresponding asset allocation recommendations addressing relevant risk and return parameters;

(iii) Provide asset class research, analysis, and recommendations;

(iv) Provide an annual liquidity review based on portfolio investment allocations and projected cash flows;

(v) Provide recommendations concerning investment manager allocations and structure;

(vi) Provide recommendations concerning risk management strategies;

(vii) Advise on the allocation of active and passive strategies;

(viii) Provide access to analytical software and tools (as available);

(ix) Provide recommendations concerning securities lending strategies, and periodic evaluation of and compliance monitoring for the MERF's securities lending program;

(x) Provide periodic evaluation of and recommendations concerning custodial arrangements, specifically custodian search and review services;

(xi) Provide investment professional fee negotiation services in connection with Treasurer's Counsel;

(xii) Provide recommendations concerning portfolio rebalancing and brokerage issues, including directed brokerage, and transition manager services.

2.3 Investment Manager Oversight Duties:

(i) Assist in the development of RFPs, RFQs, RFIs and any other data gathering requirements for competitive search processes;

(ii) Undertake initial screening of responses in connection with any search process;

(iii) Collect and periodically make available investment manager information from your database and other sources including information relating to referrals from the City Treasurer and her staff;

(iv) Prepare due diligence materials to support any manager search processes and include information consistent with pre-arranged client specifications;

(v) Support searches for investment managers by providing investment manager selection services and recommendations;

(vi) Participate in manager interviews as required/requested;

(vii) Provide ongoing due diligence on prospective managers generally and in response

to ad hoc inquiries;

(viii) Assist in establishing and/or revising manager fee schedules;

(ix) Assist in establishing and/or revising manager benchmarks;

(x) Assist in establishing and/or revising manager guidelines;

(xi) Support and provide on-going monitoring of investment managers performance and operations;

(xii) Provide on-going monitoring of investment manager performance reporting standards compliance;

(xiii) Provide access to analytical software and tools;

(xiv) Monitor manager fees and provide comparative peer metrics;

(xv) Monitor trading programs and transaction costs;

2.4 Performance Reporting and Analysis Duties:

(i) Provide performance reporting on a monthly and quarterly basis and on an as needed basis;

(ii) Compare total portfolio investment performance to custom policy benchmarks (see above);

(iii) Include investment analytics and attribution analyses at the manager, asset class and total fund levels in quarterly reporting;

(iv) Provide ongoing benchmark evaluation, implementation, and analysis;

(v) Provide access to performance and attribution analytical software, if any;

(vi) Provide ad hoc reporting, as requested by Treasurer and staff.

2.5 Training, Education and Information:

(i) Participate in ad hoc workshops on subjects designated by the City Treasurer;

(ii) Develop and provide access to educational materials and investment education on a periodic basis or, as requested.

(iii) Provide access to all firm research, including white papers and research staff;

(iv) Report, in a timely manner, any significant changes in the firm's organizational structure and staffing.

2.6 Diversity, Equity and Inclusion:

(i) Develop and maintain a database of diverse managers for inclusion and identification in all searches conducted for the City Treasurer's Office and monitor and report on City Treasurer's Office's investment manager diversity on an ongoing basis.

2.7 Other:

(i) Undertake special projects at the City Treasurer's request;

(ii) Provide other services as requested.

(iii) Report, in a timely manner, any significant changes in the firm's organizational structure and in the staffing for the MERF accounts.

(iv) Work collaboratively with any and all other MERF consultants.

3. Term of Agreement; Time for Performance:

The term of this Agreement shall commence on and shall continue for a period of years and a day expiring on , unless earlier terminated in accordance with the terms hereof.

The Consultant shall perform the activities described herein as timely as practiable and in all instances within a sufficient time to ensure that the Client is fully able reasonably to react and commit to investments deemed attractive by the Client. Any additional services, which may be performed by Consultant at Client's request, shall be completed in accordance with reasonable deadlines as may hereafter be established by Client after consultation with the Consultant. The performance of the services, and the delivery of any written materials required hereunder, shall not relieve the Consultant from the obligation to correct any defective work subsequently discovered.

4. Cooperation:

Client reserves the right to establish priorities between all projects, and the nature of the services to be, as well as the specific form in or by which such services shall be, provided with respect thereto (e.g. attending meetings, participating in telephone conferences, making presentations or preparing written reports). Client also reserves the right to revise the ends to be accomplished with each project. Consultant agrees to comply with the

foregoing as well as all cooperate with any evaluations and/or critiques of its performance hereunder, which cooperation shall include, but not be limited to, providing Client with any and all information which may be required by Client in connection therewith. Consultant shall also fully comply with all reasonable recommendations and requirements of the Client resulting from any evaluations and/or critiques of the performance by Consultant hereunder.

5. Compensation:

Consultant shall be paid per year for the Basic Services provided by it under this Agreement (hereinafter referred to as Consultant's "Basic Compensation"). Consultant shall be compensated for any Additional Services it provides hereunder at Client's written request at the rates set forth in Schedule 1, attached hereto (hereinafter, "Additional Compensation").

Client's obligation to pay any compensation to Consultant is subject to the other provisions of this Agreement, including, without limitation, this Section 5 and Sections 15 and 16 below. Additionally, except as otherwise specifically provided to the contrary in the following paragraph, Consultant shall not be paid or reimbursed for any of its overhead or other expenses, it being understood and agreed that the fixed fees and hourly rates to be paid to Consultant hereunder subsume such amounts as Consultant has deemed necessary therefor. In addition to any Basic or Additional Compensation which may be payable to Consultant hereunder, Client also agrees to reimburse Consultant for such of its Reimbursable Expenses (as hereinafter defined) which are incurred by Consultant hereunder. In no event shall Consultant charge Client for, or shall Client be obligated to pay, any fee or charge which Consultant has or may hereafter propose to impose for or in connection with any such expenses, whether as profit or to cover overhead, administrative or any other expenses whatsoever. Reimbursable Expenses shall not include any cost or expense which is incurred by Consultant for travel, lodging or subsistence unless (i) Client authorizes the trip for which such expenses are incurred, (ii) in the case of lodging or subsistence, the person providing the service at issue is required to travel in excess of one hundred (100) miles from his or her place of business at any one time, (iii) in the case of travel, the person providing the service at issue is required to travel in excess of twenty (20) miles from his or her place of business in any one day, (iv) except in the case of any request for reimbursement for use of a personal automobile, the cost or expense for which reimbursement is sought was paid to an unrelated third party, (v) the amount of any travel, subsistence or lodging expense does not exceed the City's standard per diem or other allowance for such item except as may be authorized in advance by the Client, and (vi) the Consultant provides Client with copies of its receipts or other appropriate documentation which evidences Consultant's having incurred the same (which in the case of any request for reimbursement for use of a personal automobile, shall consist of a statement signed by the vehicle's owner indicating the date(s) it was used hereunder, and, for each trip, the locations to and/or from which it was driven, the total amount of mileage traveled and the reasons therefor).

All fees to be paid to Consultant for Consultant's Basic Services, together with any other compensation due to Consultant hereunder, shall be billed by and paid to Consultant on a quarterly basis, in arrears, and only upon Consultant's submission of appropriate itemized invoices for Basic and/or Additional Services rendered, and any Reimbursable Expenses incurred, and as otherwise provided in this Section. To this end, Consultant shall prepare and submit invoices documenting the services that have been provided by it each calendar quarter by the thirtieth (30th) day of the month following the third month of the calendar quarter. All such invoices shall be in such form and accompanied by such supporting documentation as is required by the Client.

The Client's obligation to make any payments for any services rendered hereunder is expressly contingent upon Consultant having satisfactorily performed the same. In the event that the Client reasonably determines that Consultant's work is not satisfactory, or if the Client reasonably believes the Consultant otherwise has breached any of its obligations under this Agreement, the Client may take corrective action, including, but not limited to, the following:

(i) Delay of payment;

(ii) Adjustment of payment; and/or

(iii) Suspension or termination of this Agreement.

Payment will be made by the Client for any services provided hereunder within days of its receipt of Consultant's invoice therefor (and appropriate supporting documentation) in accordance with this Section. Any such invoices that remain unpaid beyond such time period shall accrue interest at the rate of per annum from their due date until fully paid.

6. Information, Reports and Documents:

6.1 With respect to potential investments reviewed by Consultant, the Consultant shall furnish to the Client written statements and reports as requested.

The Consultant also shall furnish such additional statements or reports, at such time or times, as the Client may reasonably request.

6.2 Any and all records shall be generated by the Consultant in a manner which is consistent with the Client's requirements and shall be maintained for a period of not less than five (5) years from the date of final payment to the Consultant. Consultant agrees to cooperate with any evaluations and/or audits of its performance hereunder, which cooperation shall include, but not be limited to, providing Client with any and all information which may by required by Client in connection therewith. Without limiting the generality of the foregoing, Consultant shall permit (and require its

agents and advisors to permit) the Client and/or its duly authorized representatives to examine, review, and audit any records, books, or other documents of the Consultant or any and all of the Consultant's advisors relative to the above, and furnish copies thereof at no cost to Client, when requested. Consultant shall fully comply with all reasonable recommendations and requirements of the Client resulting from any evaluations and/or audits of the performance by Consultant hereunder to the extent that any such performance is inconsistent with the provisions of this Agreement.

6.3 Client stipulates, and Consultant agrees, that all of the information, reports and documents written or assembled by Consultant and under this Agreement are the property of Client, and that said documents and information contained therein shall not be made available to any individual or organization without prior written approval of Client, except as required by state or federal law.

7. Relationship of the Parties:

Notwithstanding anything to the contrary set forth in this Agreement, the parties hereto mutually agree that this Agreement is a contract for services and not a contract of employment and that, accordingly, the relationship of Consultant to Client shall be that only of an independent contractor and that Consultant neither is nor will be an employee of Client, the City or the Pension Commission under or by virtue of this Agreement or any services which are (or are to be) provided hereunder. Without limiting the generality of the foregoing, Consultant agrees that neither it nor any of its agents or employees shall be entitled to any employment benefits from Client including, but not limited to, the following: vacation leave, holiday pay, sick leave, health, life or disability or employment insurance, worker's compensation and/or pension and retirement benefits.

Consultant acknowledges that Client may, but shall not be required to, supply Consultant with an office or other space in which to work, computer and telephone equipment and other office supplies and equipment (herein, "Office Support") when Consultant is at Client's place of business. Client agrees that any and all such Office Support which is provided by it shall be at no cost to Consultant so long as it is used by Consultant for, and Consultant hereby specifically acknowledges and agrees that they will not use any such Office Support but for, the services required to be provided by Client hereunder.

8. Management:

The projects described herein, and any others not so described as may be mutually agreed upon and undertaken during the term of this Agreement, shall be managed by the City Treasurer or her designee.

All Consultants communications, whether in writing, electronic mail or telephonically

shall be with and through the Treasurer or her designee(s).

9. Representations of the Consultant; Performance Standards:

9.1 The Consultant acknowledges that it is a fiduciary with respect to the MERF and, in that capacity, hereby represents and warrants to the Client as follows:

(i) That the Consultant is, and at all times relevant hereto will be, an investment advisor as that term is defined in the Investment Advisers Act of 1940, as amended, and as such an adviser, has the power, capacity and authority to enter into this Agreement and to perform in accordance herewith and that neither Consultant's execution of this Agreement, nor its terms, violates any obligations by which the Consultant is bound, whether arising by contract, operation of law or otherwise; and

(ii) That any and all activities which are undertaken by the Consultant for or with respect to the Client, shall be performed with professional skill and competence in accordance with the fiduciary standards of the Charter of the City of Hartford, other applicable laws and regulations, applicable provisions of the Policy Statement and otherwise as may be established by Client during the term of this Agreement. Without limiting the generality of the foregoing, Consultant represents, warrants and agrees that it will discharge its duties under this Agreement:

(a) Solely in the interests of, and for the purpose of providing benefits to, participants and beneficiaries of the MERF consistent with the other provisions of this Agreement and applicable law; and

(b) By assisting the Client and Commission in diversifying the investments of the assets of the MERF's investment program so as to minimize the risk of loss unless under the circumstances it is clearly prudent not to do so; and

(c) In a manner which is otherwise consistent with the legal standards which generally apply to the investment by named fiduciaries of the assets of Non-Exempt Employee Benefit Plans in the United States (as defined below).

9.2 For purposes of this Agreement, the provisions of Employee Retirement Income Security Act of 1974, as it has been and hereafter may be amended from time to time, (hereinafter, "ERISA"), and any and all regulations which have been or may hereafter be adopted thereunder, which apply to the care, custody, or investment of any assets of any Non-Exempt Employee Benefit Plan shall be deemed to apply to the MERF, and constitute a part of the law applicable thereto, notwithstanding that the MERF is a "governmental plan" and thus otherwise exempt from such provisions; providing,

however, in the event any conflict exists between the provisions of ERISA or any such regulations on the one hand and the provisions of the laws of the State of Connecticut or the Charter or ordinances of the City of Hartford on the other, the provisions of the latter shall prevail. For purposes of this Agreement, a "Non-Exempt Employee Benefit Plan" means any employee benefit plan as defined in 29 U.S.C. Section 1003(a) which is not exempt to ERISA's provisions regarding the care, custody or investment of plan assets pursuant to 29 U.S. C. Section 1003(b).

10. Hold-Harmless and Indemnification:

Consultant hereby agrees to indemnify and hold harmless each of the Client, Pension Commission, MERF and City of Hartford and its and their elected and appointed officials, officers, employees, and agents (hereinafter, individually and collectively, "Hartford, etc.") from and against any and all claims, demands, actions, causes of action, judgments, executions, attachments and other loss or liability whatsoever (hereinafter, individually and collectively, "Claims") arising from, in connection with or as a result of any act, error or omission by Consultant or any of its directors, officers, employees, agents or subcontractors (hereinafter, individually and collectively, "Consultant, etc.") which constitutes a breach of any obligations imposed on Consultant, etc. under, pursuant to or by reason of this Agreement or operation of law. Consultant's indemnification and hold harmless obligations as aforesaid shall include, but not be limited to, protecting Hartford, etc. from any and all losses and liabilities resulting from any such Claims, including, but not limited to, damage awards, the costs of settlement and reasonable attorneys' fees. Consultant's obligations to indemnify and hold harmless Client as set forth in this Section 10 shall survive the expiration or any earlier termination of this Agreement to the extent any matter or thing complained of first occurred or was continuing during the term hereof.

11. INSURANCE:

11.1 During the Term hereof, Consultant shall carry and keep in force the following types and amounts of insurance coverage at its sole cost and expense for the duration of the Contract including any and all extensions or renewals hereof:

(i) **Comprehensive General Liability Insurance** (including contractual liability coverage) insuring against damages to persons and property (including, but not limited to, loss of life) in an amount not less than a combined single limit of at least for each occurrence with a deductible not exceeding which deductible is understood to be the responsibility of the Consultant; and

(ii) **Automobile Liability Insurance** for all automobiles used by the Consultant and/or any of its officers, directors, members, partners, agents and/or employees in connection with the services provided by it

hereunder, with a combined single limit of for each accident with a deductible not exceeding which deductible is understood to be the responsibility of the Consultant; and

(iii) **Workers' Compensation Insurance** covering the Consultant's and its agent's employees at the Connecticut Statutory limit including Employers' Liability with limits of for each accident, for each disease/policy limit, and for disease for each employee, with a deductible not exceeding Ten Thousand Dollars which deductible is understood to be the responsibility of the Consultant; and

(iv) **Umbrella Liability** following form over the insurance provided under subsections (i) and (ii) above, with a limit of liability which, when combined with the primary insurance over which such excess coverage is being provided, equals at and

(v) **Professional Liability Coverage** insuring Consultant against claims for breach of its fiduciary duties to Client and/or the MERF for an amount not less than per policy period, with a deductible that does not exceed which deductible shall be the sole responsibility of the Consultant to pay and/or indemnify. Said coverage shall be obtained on a claims made basis for the term of this Agreement and continue for two years following the completion of this Agreement at the Consultant's expense.

(vi) **Cybersecurity Insurance** insuring against financial losses and legal consequences caused by incidents like data breaches, theft, system hacking and malicious activities such as ransomware extortion payments.

11.2 All insurance required hereunder shall be effected under standard form policies by insurers of recognized responsibility which are licensed to do business in the State of Connecticut and which are rated as A-(X) or better by the latest edition of Best's Rating Guide or other recognized replacement therefor (or as otherwise approved by Client in writing on a case by case basis upon issuance of any policy and/or any renewal thereof, which approval may be withheld in the Client's sole and absolute discretion). Except as otherwise provided to the contrary in this Section, any insurance required by this Agreement may be obtained by means of any combination of primary and umbrella coverages and by endorsement and/or rider to a separate or blanket policy and/or under a blanket policy in lieu of a separate policy or policies, provided that the Consultant shall deliver a certificate of insurance of any said separate or blanket policies and/or endorsements and/or riders evidencing to the Client that the same complies in all respects with the provisions of this Agreement, and that the coverages thereunder and the protection afforded the City, Commission, Client and MERF thereunder are at least equal to the coverages and protection which would be provided under a separate policy or

policies procured solely under and by reason of this Agreement.

11.3 Except as otherwise provided in this Section, all insurances required in this Section may be carried on either an "occurrence" or a "claims made" basis, providing, however, that, should any insurance be carried on a "claims made" basis, the Consultant also shall be obligated to procure an extended reporting period thereto or a subsequent "claims made" policy with the same retroactive date as the prior "claims made" policy, as necessary to protect the City, Commission, Client and MERF from any claims, actions or causes of action which first accrue during the term of this Agreement.

11.4 All insurance which is carried pursuant to this Section shall include provisions which deny to the insurer acquisition by subrogation of rights of recovery against the Client, and/or any of the other parties encompassed within the definition of "Hartford, etc." in Section 10 above, as and to the extent such rights have been waived by the insured party prior to occurrence of loss or injury as set fo1ih elsewhere in this paragraph, and insofar as and to the extent that such provisions may be effective without making it impossible to obtain insurance coverage from reputable companies qualified to do business in the State of Connecticut even though extra premiums may result therefrom. The Client shall be entitled to have duplicates of certificates of any policies containing such provision. The Consultant hereby waives its rights of recovery against the Client and any and all of the other parties encompassed within the definition of "Hartford, etc." in Section 10 above for loss or injury against which Client is protected by insurance containing said provisions, reserving, however, any rights with respect to any excess of loss or injury over the amount recovered by such insurance.

11.5 All insurance required to be maintained by the Consultant pursuant to this Agreement shall be at the sole expense of the Consultant. All references in this Section 11 to a "deductible" shall be deemed to mean a deductible and/or a self-insured retention, which is also the sole responsibility of the Consultant to pay or indemnify.

11.6 The Consultant agrees that it will not carry or be the beneficiary of any insurance in addition to the Professional Liability insurance (or equivalent) insuring the Consultant or any or any of its officers, directors, partners, members or employees or any other person or entity against the risks for which insurance is required to be maintained pursuant to this Section unless (1) except in the case of in the case of Workers' Compensation and Professional Liability coverages, the City, Commission, Client and MERF are named as Additional Insureds thereunder, and (2) the insurance and insurance carriers otherwise comply with the terms of this Section.

11.7 The Consultant shall provide the Client with certificates of all insurances required to be maintained by it hereunder which, in each case, shall name the Client, Pension

Commission, City and the MERF as additional insureds for all such insurance other than for Workers' Compensation and Professional Liability coverages. ACCORDINGLY, THE FOLLOWING UNDERLINED WORDING MUST BE SHOWN IN THE SPACE PROVIDED FOR "COMMENTS" ON THE ACORD INSURANCE CERTIFICATE: **The City of Hartford and its City Treasurer, Pension Commission and the Municipal Employees' Retirement are named as Additional Insureds. ATIMA.** Each certificate of insurance shall provide not less than a 30-day notice of cancellation to the Client of, or any other changes in the coverage to be provided under any of, the insurance policies evidenced thereby. The certificates of such policy or policies evidencing such coverages shall be delivered to the Client upon the execution hereof and as of thirty (30) days prior to the anniversary date hereof each year hereafter.

11.8 All insurance policies referred to in this Section shall provide that any losses thereunder shall be adjusted with the Client and that any loss thereunder shall be payable to Client as Client's interests may appear. Neither party shall not unreasonably withhold or delay its endorsement to any insurance check payable hereunder.

11.9 It is agreed between the parties hereunto that the types and amounts of insurance required to be maintained by the Consultant pursuant to this Agreement do not, in any way, limit the liability of the Consultant to the Client or any other individual or entity by virtue of its promise to indemnify them and hold them harmless so that in the event that any Claim results in a settlement or judgment in an amount in excess of the amount of insurance coverage carried by the Consultant, the Consultant shall be liable to said persons for the difference, plus all fees and expenses incurred in collecting the same, all at the Consultant's sole cost and expense.

11.10 Insurance requirements and coverages may be reviewed from time to time during the term of this Contract and all extensions and renewals hereof. The Consultant agrees to comply with any and all reasonable insurance requirements or modifications made by the Client.

11.11 Cancellation or other termination of insurance policies required by this Agreement without immediate replacement thereof may be considered a default in the terms and conditions of this Agreement. The Consultant agrees that such default may be cured by procurement of insurance on behalf of Consultant, at the Consultant's expense, and deducted from any amounts otherwise due to Consultant under this or any other contract, at the Client's option.

12. Conflict of Interest:

The Consultant hereby represents and warrants to the Client as follows:

(i) The Consultant has not paid, and shall not pay, any "finder's fees," so-called,

for, as a result of or in connection with this contract or the award or performance thereof;

(ii) Without limiting the generality of the foregoing, neither Consultant nor its subcontractors has employed or retained any company or person, other than a bona fide employee working solely for the Consultant or subcontractors, to solicit or secure this Agreement, and neither the Consultant nor its subcontractors has paid or agreed to pay any company or person, other than bona fide employees working solely for the Consultant or its subcontractors, any fee, gift or any other consideration contingent upon or resulting from the award or making of this Agreement;

(iii) The services to be provided hereunder do not in any way conflict with the interests of any individual, group, business, or governmental organization with which the Consultant or its subcontractors is employed or with which the Consultant or its subcontractors has an agreement or is associated, and, in the event such a conflict arises during the term hereof, the Consultant will immediately notify the Client in writing; and

(iv) No public official, either paid or unpaid, who exercises any functions or responsibilities with respect to this Agreement during the individual's tenure, or for one (1) year thereafter, shall have any personal or financial interest, direct or indirect, in any contract between the Client or the City, on the one hand, and the Consultant or its subcontractors, on the other, any subcontract thereunder or the proceeds of either for work and/or services of the type to be performed in connection with this Agreement.

In the event any of the foregoing representations are untrue, or if any fact or circumstance occurs during the term hereof that cause any of the same to be untrue, then the Client, in addition to such other rights or remedies which may then be available to it, all of which are expressly reserved hereby, shall have the option of terminating this Agreement in accordance with Section 16.2 below.

13. Confidentiality:

The Consultant shall not (and the Consultant shall obtain its subcontractors' agreement that they will not), at any time during, or after the expiration of, the term of this Agreement, divulge to any person, or use for its or any other person's benefit, any information or fact relating to the conduct, management, or business of the Client or the City, which shall have come to the knowledge of the Consultant in the course of providing the services hereunder. The Consultant further agrees to (and the Consultant shall obtain its subcontractors' agreement that they will) treat as confidential, and to use only for the advancement of the interest of the Client, all data and other information submitted to or obtained by it in connection with the Client during the term of this Agreement. Except as may otherwise be agreed by the Client, all originals and copies of any such materials shall

be returned to the Client upon termination or expiration of this Agreement or at such earlier time as is requested thereby. Notwithstanding the above, the Client understands that the Consultant will retain at least one copy of all working papers and reports for a period of five years after the conclusion of the project, which shall nonetheless remain subject to the terms of this Agreement.

14. Events of Default and Remedies:

14.1 Events of Default:

Any of the following occurrences or acts shall constitute an Event of Default under this Agreement.

(i) Whenever Consultant shall do, or permit anything to be done, whether by action or inaction, contrary to any of the covenants, agreements, terms or provisions contained in this Agreement which on the part or behalf of Consultant are to be kept or performed; or

(ii) If any determination shall have been made by competent authority such as, but not limited to, any federal, state or local government official, or a certified public accountant, that the Consultant's or its subcontractors' management or any accounting for its or their funding, from whatever source, is improper, inadequate or illegal, as such management or accounting may relate to the Consultant's performance of this contract; or

(iii) Whenever an involuntary petition shall be filed against Consultant under any bankruptcy or insolvency law or under the reorganization provisions of any law of like import, or a receiver of Consultant or of or for the property of Consultant shall be appointed without the acquiescence of Consultant, or whenever this Agreement or the unexpired balance of the term would, by operation of law or otherwise, except for this provision, devolve upon or pass to any person, firm or corporation other than Consultant or a corporation in which Consultant may be duly merged, converted or consolidated under statutory procedure, and such circumstance under this subparagraph shall continue and shall remain undischarged or unstayed for an aggregate period of sixty (60) days (whether or not consecutive) or shall not be remedied by Consultant within sixty (60) days; or

(iv) Whenever Consultant shall make an assignment of the property of Consultant for the benefit of creditors or shall file a voluntary petition under any bankruptcy or insolvency law, or whenever any court of competent jurisdiction shall approve a petition filed by Consultant under the reorganization provisions of the United States Bankruptcy Code or under the provisions of any law of like import, or whenever a petition shall be filed by Consultant under the

arrangement provisions of the United States Bankruptcy Code or under the provisions of any law of like import, or whenever Consultant shall desert or abandon the project; or

(v) If any competent authority shall have determined that the Consultant is in default of any federal, state or local tax obligation; or

(vi) Pursuant to a Resolution passed by the Court of Common Council on September 12, 1983, if the Consultant or its subcontractors or any business entity in which Consultant or any of Consultant's partners, members or shareholders own at least twenty-five percent (25%) of its economic interests, directly or indirectly, is in default of any tax or other financial obligations which are owed to the City of Hartford, Connecticut (City). Default shall be considered to have occurred under this subsection when any payment required to be made to the City is more than thirty (30) days past due.

14.2 Election of Remedies:

If any Event of Default hereunder shall have occurred and be continuing, the Client may elect to pursue any one or more of the following remedies, in any combination or sequence:

(i) Take such action as it deems necessary, including, without limitation, the temporary withholding or reduction of payment;

(ii) Suspend program operation;

(iii) Require the Consultant to correct or cure such default to the satisfaction of the Client; and/or

(iv) Terminate this Agreement for cause in accordance with Section 16.2 hereof.

The selection of any remedy shall not prevent or stop the Client from pursuing any other remedy and shall not constitute a waiver by the Client of any other right or remedy.

15. TERMINATION OF AGREEMENT:

15.1 Termination:

"Termination", for purposes of this Agreement, shall mean the cessation, upon the effective date of termination, of the following obligations only: The Consultant's obligation to perform the services described in Section 2, Servies, of this Agreement, and the City's obligation, as described in Section 5, Compensation, of this Agreement, to pay for such services.

15.2 Termination for Cause:

Upon the occurrence of any Event of Default, as set forth in Section 15.1 hereof, the Client may terminate this Agreement by giving written notice thereof to the Consultant. The Client, at its sole discretion, shall determine when such notice shall be issued.

15.3 Termination for Program Change:

In the event the program shall be terminated or significantly changed, the Client may terminate this Agreement on thirty (30) days' written notice thereof to the Consultant.

15.4 Termination for Non-availability of Funds:

In the event the Client shall not have funds available for this program, the Client may terminate this Agreement on thirty (30) days' written notice thereof to the Consultant.

15.5 Termination at Will:

The Client may terminate this Agreement at any time by giving thirty (30) days' prior written notice thereof to the Consultant.

15.6 Payment upon Termination at Will:

In the event this agreement is terminated pursuant to any of Sections 16.3 through 16.5 above, the Client shall make full payment to the Consultant for all services performed up to and including the date of termination within sixty (60) days of such date of termination and presentation of Consultant's invoices therefor in accordance with and subject to the provisions of Section 5 above.

15.7 Payment upon Termination for Cause:

In the event this agreement is terminated pursuant to Section 16.2 above, and subject to the provisions of Section 5 (compensation) above and the other provisions of this Agreement, the Client shall make full payment to the Consultant for all services performed up to and including the date of termination within sixty (60) days of such date of termination and presentation of Consultant's invoices therefor in accordance with Section 5 above.

16. Establishment and Maintenance of Records; Audits:

The Consultant agrees to establish and maintain fiscal control and accounting procedures that assure proper accounting for all funds paid by the Client to the Consultant under this Agreement. Without limiting the generality of the foregoing, the Consultant agrees that it will maintain accurate and complete records of (i) all charges and any other claims or

demands for compensation from the Client, or any other person or entity, in connection with the services provided by Consultant hereunder (including, without limitation, any claims for or arising out of any alleged breach of this Agreement), (ii) the basis (including but not limited to, supporting documentation) therefor, and (iii) the amount and source of any and all payments or other consideration ultimately recovered in respect thereof.

Any and all records shall be generated by the Consultant in a manner which is consistent with the Client's requirements and shall be maintained for a period of not less than three (3) years from the date of final payment to the Consultant. The Consultant further shall permit (and require its Agents and advisors to permit) the Client and/or its duly authorized representatives to examine, review, and audit any records, books, or other documents of the Consultant or any and all of the Consultant's Agents and advisors relative to the above, and furnish copies thereof, when requested.

17. Subcontractors:

None of the Basic or Additional Services to be provided by Consultant hereunder may be subcontracted by Consultant without Client's written approval, which approval may be withheld by Client in its sole and absolute discretion. Further, any such approval which may be granted by Client may be conditioned upon Consultant's awarding any such subcontract upon such terms and/or in accordance with such procedures as may be stipulated by Client; providing that any work which may be required to be performed by Consultant to satisfy any such condition shall be deemed to be an Additional Service for which Consultant shall be entitled to be paid as if the same were ordered by Client pursuant to Sections 2 and 5 above.

18. Anti-Discrimination and Affirmative Action:

The Consultant agrees to abide by the provisions of Section 2-679 *et seq.* of the City of Hartford Municipal Code (as applicable), Executive Orders Number 3 and 17 of the State of Connecticut; and Presidential Executive Orders Number 11246, 11375 and 11063. In carrying out this program, the Consultant shall not discriminate against any employee or applicant for employment because of race, color, religion, age, sex, national origin, mental disability, physical handicap, marital status or sexual orientation.

The Consultant shall take affirmative action to ensure that any and all applicants for employment with the Consultant are employed, and that employees of the Consultant are treated during employment, without regard to their race, color, religion, age, sex, national origin, mental disability, physical handicap, marital status or sexual orientation. Such action shall include, but not be limited to the following: employment, upgrading, demotion, transfer, recruitment, recruitment advertising, layoff, termination, rates of pay and other forms of compensation, and selection for training, including apprenticeship. The Consultant shall post in conspicuous places, available to employees and applicants for employment, notices to be provided by the federal government, setting forth the

provisions of the non-discrimination clause.

The Consultant shall state that all qualified applicants for employment by or with Consultant shall receive consideration for employment without regard to race, color, religion, age, sex, national origin, mental disability, physical handicap, marital status or sexual orientation. The Consultant further agrees to abide by the terms and conditions contained in the City of Hartford's *Equal Employment Opportunity Questionnaire for Vendors and Contractors.*

19. Americans with Disabilities Act (ADA) Of 1990:

The Consultant agrees to abide by the provisions of the Americans with Disabilities Act (ADA) of 1990; Public Law 101-336, as applicable.

In compliance with this law, the Consultant shall not discriminate against a qualified individual with a disability because of the disability of such individual in regard to job application procedures, the hiring, advancement, or discharge of employees, employee compensation, job training, and other terms, conditions, and privileges of employment. No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of services, programs, or activities of the Consultant, or be subjected to discrimination by the Consultant. No individual shall be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, privileges, advantages or accommodations provided by the Consultant.

Any television public service announcement that is produced or funded in whole or in part under this Contract shall include closed captioning of the verbal content of such announcement. The Consultant shall not discriminate against any individual because such individual has opposed any act or practice made unlawful by this Act or because such individual made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing under this Act.

The Consultant shall not permit coercion, intimidation, threatening, or interfere with any individual in the exercise or enjoyment of, or on account of his or her having exercised or enjoyed, or on account of his or her having aided or encouraged any other individual in the exercise or enjoyment of, any right granted or protected by this Act.

20. Taxpayer Identification Number:

The Internal Revenue Service Form W-9, *Request for Taxpayer Identification Number and Certification* as submitted by the Consultant, is hereby made a part of this Contract and is incorporated herein by reference. It is understood and agreed that the Client shall use the number as listed on the IRS Form W-9 to report any and all compensation paid to

the Consultant under this Agreement. It is further understood and agreed that neither the Client, Pension Commission nor City shall be liable for inaccurate information contained on said IRS Form W-9.

21. Delinquency in Obligations:

The Consultant hereby agrees that throughout the period of the contract, all taxes, contractual obligations and audit responsibilities owed to the City shall be and remain current.

22. Non-Waiver:

Any failure by the Client or the Consultant to insist upon the strict performance by the other of any of the terms and provisions hereof shall not constitute a waiver of that or any other of said other party's obligations hereunder, and each party hereto, notwithstanding any such failure, shall have the right thereafter to insist upon the strict performance by the other, of any and all of the terms and provisions of the Agreement. Further, the payment by Client to Consultant of any amounts hereunder shall not preclude Client from later questioning the appropriateness of Client's having made any such payment nor, to the extent any such payment was not properly due and payable hereunder, prevent Client from offsetting the amount of any such improper payment against any amounts which are then (or thereafter come) due to Consultant under or by reason of this Agreement or otherwise (and/or pursuing such other remedies to recover such sums), all of which the parties hereby explicitly agree Client shall be entitled to do at any time during or after the expiration (or earlier termination) of this Agreement.

23. Amendment:

This Agreement may be amended only by written instrument executed by the parties hereto. The Client and the Consultant may require changes in the Scope of Services to be performed hereunder. However, such changes shall only be those which are mutually agreed upon by and between the Client and the Consultant that are incorporated in written amendments to this Agreement.

24. Disclaimer or Agency or Third Party Beneficiary Rights:

In no event shall anything in this Agreement be deemed to confer upon any person or entity agency status or third party beneficiary rights against the Client.

25. Non-Assignability by Consultant:

This Agreement shall be personal as respects the obligations of Consultant and, accordingly, shall not be transferable or assignable by the Consultant, by operation of law or otherwise, without prior written consent of the Client, which consent may be withheld in its sole and absolute discretion. Without limiting the foregoing, the acquisition of a controlling interest in Consultant's stock by, or merger of Consultant with, another person or entity, (directly or indirectly) shall be deemed to be a transfer or assignment of this Agreement for which Client's approval is required hereunder.

The Consultant shall give the Client prompt written notice whenever Consultant anticipates merging, associating or being taken over by another firm, consultant or other entity. Such notice shall be provided to Client at least one hundred eighty (180) days prior to the date on which such action is to take place. Consultant shall provide Client with all information concerning any such transaction as may reasonably be requested by Client in order for Client to determine whether to continue to do business with Consultant hereunder. Any failure buy Consultant to comply with the provisions of this subparagraph shall be deemed to constitute a default under this Agreement.

26. Severability:

If any provision of this Agreement is held invalid, the remainder of this Agreement shall not be affected thereby if such remainder would then continue to conform to the terms and requirements of applicable law.

27. Cumulative Remedies:

All rights and remedies exercisable by of the Client hereunder shall be cumulative and the exercise or beginning of the exercise by the Client of any of its rights or remedies hereunder shall not preclude the Client from exercising any other right or remedy granted hereunder or permitted by law.

28. Gender/Number/Title/Construction:

Words of any gender used in this Agreement shall be held and construed to include any other gender, and words in the singular shall be held and construed to include the plural, unless the Agreement requires otherwise. In the event of any discrepancy or conflict between the name and title of any person referred to in this Agreement, the title shall prevail.

29. Notices:

All notices, demands, instructions, requests, advise, consents, waivers, approvals and other communications shall be in writing and shall be deemed given (i) upon the hand delivery thereof during the recipient's normal business hours, provided a receipt is obtained, or (ii) upon the earlier of receipt or the third Business Day after posting thereof by certified mail, return receipt requested, postage charges prepaid, or (iii) upon the next Business Day following delivery thereof to a reliable and nationally recognized air freight delivery service such as Federal Express or express mail, freight charges prepaid, or (iv) upon delivery during the recipient's normal business hours if by telecopier transmissions, provided, in each of any of the four cases noted above, a receipt is obtained, addressed or delivered to the respective parties at their respective addresses or telecopier numbers set forth below (or at such other addresses or telecopier numbers designated by any party at any time by notice to the other party in the manner set forth below:

As to the Client:

As to the Consultant:

30. Merger:

This Agreement and its exhibits referenced herein and attached hereto, contains the entire understanding between the parties hereto and supersedes any and all prior understandings, negotiations, and agreements, whether written or oral, between them respecting the subject matter hereof.

31. Governing Law:

This Agreement shall be construed in accordance with applicable federal law and, to the extent not pre-empted by them, the laws of the State of Connecticut (without reference to its conflict of law provisions) and the Ordinances and Charter of the City of Hartford.

EXHIBIT A

FUNDING AND INVESTMENT POLICY STATEMENT

https://www.hartfordcitytreasurer.org/images/pdf/20230630-MERF-IPS-Adopted.pdf

SCHEDULE 1

Compensation for Additional Services

Additional consulting as described in the agreement is available to the Client at a rate of between

From time-to-time the Client may utilize the services of other individuals working for the Consultant. In these cases, the same professional rates as above will apply.

Consultant shall notify Client in writing of the name and position of all individuals who may be assigned to any project involving additional services and the hourly rate therefore prior to commencing any work on the same. Any and all bills for additional services shall indicate the number of hours each such individual has provided any services to the Client each week during the period covered by such invoice as well as a brief description of the activities performed thereby. Consultant shall keep detail records supporting all such invoices which shall be available for audit by Client as provided in Section 17 of the Agreement.

Consultant shall be reimbursed for travel expenses (if any) associated with providing any such additional services as and to the extent provided in Section 5 of the Agreement.

PROPOSED CONTRACT FOR PROFESSIONAL SERVICES - OPEB

This Agreement is made effective as of the day of by and between , CITY TREASURER of the City of Hartford (hereinafter the "Client") and Trustee of the City's OPEB Trust Fund and Secretary of the OPEB Committee (hereinafter the "Committee") *on behalf of* the City of Hartford Other Post Employment Benefits ("OPEB") Trust Fund (hereinafter the "OPEB"), duly authorized under the authority of the Charter of the City of Hartford , and , with a principal office and place of business at (hereinafter the "Consultant").

WITNESSETH

WHEREAS, The Committee has adopted an investment program, as more particularly delineated in the Funding and Investment Policy Statement for the OPEB, dated , as amended through , attached hereto and made a part hereof as Exhibit A (hereinafter the "Policy Statement"); and

WHEREAS, The Committee has further authorized Client to engage Consultant to assist Client and the Committee in structuring this program and in identifying, reviewing, recommending potential investments by the OPEB; and

WHEREAS, In response to a Request For Proposals, Consultant has proposed to provide such services for a total of $ per year;

NOW THEREFORE:

In consideration of the mutual representations and covenants herein contained, and intending to be legally bound hereby, the parties hereto hereby mutually agree as follows:

1. Recitals:

   The parties agree that the foregoing recitals are true and correct and are hereby incorporated in and made a part of this Agreement.

2. Appointment: Scope of Services:

   Client hereby appoints Consultant, and Consultant hereby accepts its appointment, as Client's primary investment advisor for the OPEB's program, subject to and in accordance with the terms of this Agreement. The services to be provided by Consultant hereunder shall consist of both Basic and, if requested by Client, Additional Services. The Basic

Services to be provided by Consultant hereunder shall consist of performing all of those activities necessary or appropriate for Consultant to perform as the OPEB's primary investment advisor for its investment program as contemplated by the Policy Statement, which services shall include, but not necessarily be limited to:

2.1 Policy Duties:

(i) Annually, review the Investment Policy Statements ("IPS")

(ii) Recommend and assist in drafting changes to the IPS;

(iii) Assist in establishing and/or revising asset class level manager guidelines and restrictions;

(iv) Annually, review and recommend appropriate benchmark revisions;

(v) Annually, provide capital market assumptions and expected returns to model asset allocation updates;

(vi) Assist in establishing systems and procedures for monitoring policies on an ongoing basis;

(vii) Provide recommendations concerning long-term investment policy, investment objectives and strategy, including manager continuation policies and rebalancing policies;

(viii) Provide recommendations concerning investment goals, policies, guidelines and procedures for private and publicly managed portfolios;

(ix) Provide recommendations concerning risk management policies, and other related issues;

(x) Provide compliance monitoring.

2.2 Asset Allocation & Total Portfolio Duties:

(i) Conduct periodic asset allocation and asset-liability studies;

(ii) Conduct annual asset allocation reviews and provide corresponding asset allocation recommendations addressing relevant risk and return parameters;

(iii) Provide asset class research, analysis, and recommendations;

(iv) Provide an annual liquidity review based on portfolio investment allocations and projected cash flows;

(v) Provide recommendations concerning investment manager allocations and structure;

(vi) Provide recommendations concerning risk management strategies;

(vii) Advise on the allocation of active and passive strategies;

(viii) Provide access to analytical software and tools (as available);

(ix) Provide recommendations concerning securities lending strategies, and periodic evaluation of and compliance monitoring for the OPEB's securities lending program;

(x) Provide periodic evaluation of and recommendations concerning custodial arrangements, specifically custodian search and review services;

(xi) Provide investment professional fee negotiation services;

(xii) Provide recommendations concerning portfolio rebalancing and brokerage issues, including directed brokerage, and transition manager services.

2.3 Investment Manager Oversight Duties:

(i) Assist in the development of RFPs, RFQs, RFIs and any other data gathering requirements for competitive search processes;

(ii) Undertake initial screening of responses in connection with any search process;

(iii) Collect and periodically make available investment manager information from your database and other sources including information relating to referrals from the City Treasurer and her staff;

(iv) Prepare due diligence materials to support any manager search processes and include information consistent with pre-arranged client specifications;

(v) Support searches for investment managers by providing investment manager selection services and recommendations;

(vi) Participate in manager interviews as required/requested;

(vii) Provide ongoing due diligence on prospective managers generally and in response to ad hoc inquiries;

(viii) Assist in establishing and/or revising manager fee schedules;

(ix) Assist in establishing and/or revising manager benchmarks;

(x) Assist in establishing and/or revising manager guidelines;

(xi) Support and provide on-going monitoring of investment managers performance and operations;

(xii) Provide on-going monitoring of investment manager performance reporting standards compliance;

(xiii) Provide access to analytical software and tools;

(xiv) Monitor manager fees and provide comparative peer metrics;

(xv) Monitor trading programs and transaction costs;

2.4 Performance Reporting and Analysis Duties:

(i) Provide performance reporting on a monthly and quarterly basis and on an as needed basis;

(ii) Compare total portfolio investment performance to custom policy benchmarks (see above);

(iii) Include investment analytics and attribution analyses at the manager, asset class and total fund levels in quarterly reporting;

(iv) Provide ongoing benchmark evaluation, implementation, and analysis;

(v) Provide access to performance and attribution analytical software, if any;

(vi) Provide ad hoc reporting, as requested by the Treasurer and staff.

2.5 Training, Education and Information:

(i) Participate in ad hoc workshops on specific issues designated by the City Treasurer;

(ii) Develop and provide access to educational materials and investment education on a periodic basis or, as requested.

(iii) Provide access to all firm research, including white papers and research staff;

(iv) Report, in a timely manner, any significant changes in the firm's organizational structure and staffing.

2.6 Diversity, Equity and Inclusion:

(i) Develop and maintain a database of diverse managers for inclusion and identification in all searches conducted for the City Treasurer's Office and monitor and report on City Treasurer's Office's investment manager diversity on an ongoing basis.

2.7 Other:

(i) Undertake special projects at the City Treasurer's request;

(ii) Provide other services as requested.

(iii) Report, in a timely manner, any significant changes in the firm's organizational structure and in the staffing for the OPEB accounts.

(iv) Work collaboratively with any and all other MERF consultants.

3. Term of Agreement; Time for Performance:

The term of this Agreement shall commence on and shall continue for a period of years and a day expiring on , unless earlier terminated in accordance with the terms hereof.

The Consultant shall perform the activities described herein as timely as practiable and in all instances within a sufficient time to ensure that the Client is fully able to reasonably react and commit to investments deemed attractive by the Client. Any additional services, which may be performed by Consultant at Client's request, shall be completed in accordance with reasonable deadlines as may hereafter be established by Client after consultation with the Consultant. The performance of the services, and the delivery of any written materials required hereunder, shall not relieve the Consultant from the obligation to correct any defective work subsequently discovered.

4. Cooperation:

Client reserves the right to establish priorities between all projects, and the nature of the services to be, as well as the specific form in or by which such services shall be, provided with respect thereto (e.g. attending meetings, participating in telephone conferences, making presentations or preparing written reports). Client also reserves the right to revise the ends to be accomplished with each project. Consultant agrees to comply with the foregoing as well as all cooperate with any evaluations and/or critiques of its performance hereunder, which cooperation shall include, but not be limited to, providing Client with any and all information which may be required by Client in connection therewith. Consultant shall also fully comply with all reasonable recommendations and requirements

of the Client resulting from any evaluations and/or critiques of the performance by Consultant hereunder.

5. Compensation:

Consultant shall be paid per year for the Basic Services provided by it under this Agreement (hereinafter referred to as Consultant's "Basic Compensation"). Consultant shall be compensated for any Additional Services it provides hereunder at Client's written request at the rates set forth in Schedule 1, attached hereto (hereinafter, "Additional Compensation").

Client's obligation to pay any compensation to Consultant is subject to the other provisions of this Agreement, including, without limitation, this Section 5 and Sections 15 and 16 below. Additionally, except as otherwise specifically provided to the contrary in the following paragraph, Consultant shall not be paid or reimbursed for any of its overhead or other expenses, it being understood and agreed that the fixed fees and hourly rates to be paid to Consultant hereunder subsume such amounts as Consultant has deemed necessary therefor. In addition to any Basic or Additional Compensation which may be payable to Consultant hereunder, Client also agrees to reimburse Consultant for such of its Reimbursable Expenses (as hereinafter defined) which are incurred by Consultant hereunder. In no event shall Consultant charge Client for, or shall Client be obligated to pay, any fee or charge which Consultant has or may hereafter propose to impose for or in connection with any such expenses, whether as profit or to cover overhead, administrative or any other expenses whatsoever. Reimbursable Expenses shall not include any cost or expense which is incurred by Consultant for travel, lodging or subsistence unless (i) Client authorizes the trip for which such expenses are incurred, (ii) in the case of lodging or subsistence, the person providing the service at issue is required to travel in excess of one hundred (100) miles from his or her place of business at any one time, (iii) in the case of travel, the person providing the service at issue is required to travel in excess of twenty (20) miles from his or her place of business in any one day, (iv) except in the case of any request for reimbursement for use of a personal automobile, the cost or expense for which reimbursement is sought was paid to an unrelated third party, (v) the amount of any travel, subsistence or lodging expense does not exceed the City's standard per diem or other allowance for such item except as may be authorized in advance by the Client, and (vi) the Consultant provides Client with copies of its receipts or other appropriate documentation which evidences Consultant's having incurred the same (which in the case of any request for reimbursement for use of a personal automobile, shall consist of a statement signed by the vehicle's owner indicating the date(s) it was used hereunder, and, for each trip, the locations to and/or from which it was driven, the total amount of mileage traveled and the reasons therefor).

All fees to be paid to Consultant for Consultant's Basic Services, together with any other compensation due to Consultant hereunder, shall be billed by and paid to Consultant on a quarterly basis, in arrears, and only upon Consultant's submission of appropriate itemized

invoices for Basic and/or Additional Services rendered, and any Reimbursable Expenses incurred, and as otherwise provided in this Section. To this end, Consultant shall prepare and submit invoices documenting the services that have been provided by it each calendar quarter by the thirtieth (30th) day of the month following the third month of the calendar quarter. All such invoices shall be in such form and accompanied by such supporting documentation as is required by the Client.

The Client's obligation to make any payments for any services rendered hereunder is expressly contingent upon Consultant having satisfactorily performed the same. In the event that the Client reasonably determines that Consultant's work is not satisfactory, or if the Client reasonably believes the Consultant otherwise has breached any of its obligations under this Agreement, the Client may take corrective action, including, but not limited to, the following:

(i) Delay of payment;

(ii) Adjustment of payment; and/or

(iii) Suspension or termination of this Agreement.

Payment will be made by the Client for any services provided hereunder within days of its receipt of Consultant's invoice therefor (and appropriate supporting documentation) in accordance with this Section. Any such invoices that remain unpaid beyond such time period shall accrue interest at the rate of per annum from their due date until fully paid.

6. Information, Reports and Documents:

6.1 With respect to potential investments reviewed by Consultant, the Consultant shall furnish to the Client written statements and reports as requested.

The Consultant also shall furnish such additional statements or reports, at such time or times, as the Client may reasonably request.

6.2 Any and all records shall be generated by the Consultant in a manner which is consistent with the Client's requirements and shall be maintained for a period of not less than five (5) years from the date of final payment to the Consultant. Consultant agrees to cooperate with any evaluations and/or audits of its performance hereunder, which cooperation shall include, but not be limited to, providing Client with any and all information which may by required by Client in connection therewith. Without limiting the generality of the foregoing, Consultant shall permit (and require its agents and advisors to permit) the Client and/or its duly authorized representatives to examine, review, and audit any records, books, or other documents of the Consultant or any and all of the Consultant's advisors relative to the above, and

furnish copies thereof at no cost to Client, when requested. Consultant shall fully comply with all reasonable recommendations and requirements of the Client resulting from any evaluations and/or audits of the performance by Consultant hereunder to the extent that any such performance is inconsistent with the provisions of this Agreement.

6.3 Client stipulates, and Consultant agrees, that all of the information, reports and documents written or assembled by Consultant and under this Agreement are the property of Client, and that said documents and information contained therein shall not be made available to any individual or organization without prior written approval of Client, except as required by state or federal law.

7. Relationship of the Parties:

Notwithstanding anything to the contrary set forth in this Agreement, the parties hereto mutually agree that this Agreement is a contract for services and not a contract of employment and that, accordingly, the relationship of Consultant to Client shall be that only of an independent contractor and that Consultant neither is nor will be an employee of Client, the City or the Committee under or by virtue of this Agreement or any services which are (or are to be) provided hereunder. Without limiting the generality of the foregoing, Consultant agrees that neither it nor any of its agents or employees shall be entitled to any employment benefits from Client including, but not limited to, the following: vacation leave, holiday pay, sick leave, health, life or disability or unemployment insurance, worker's compensation and/or pension and retirement benefits.

Consultant acknowledges that Client may, but shall not be required to, supply Consultant with an office or other space in which to work, computer and telephone equipment and other office supplies and equipment (herein, "Office Support") when Consultant is at Client's place of business. Client agrees that any and all such Office Support which is provided by it shall be at no cost to Consultant so long as it is used by Consultant for, and Consultant hereby specifically acknowledges and agrees that they will not use any such Office Support but for, the services required to be provided by Client hereunder.

8. Management:

The projects described herein, and any others not so described as may be mutually agreed upon and undertaken during the term of this Agreement, shall be managed by the City Treasurer or her designee.

All Consultants communications, whether in writing, electronic mail or telephonically shall be with and through the Treasurer or her designee(s).

9. Representations of the Consultant; Performance Standards:

9.1 The Consultant acknowledges that it is a fiduciary with respect to the OPEB and, in that capacity, hereby represents and warrants to the Client as follows:

(i) That the Consultant is, and at all times relevant hereto will be, an investment advisor as that term is defined in the Investment Advisers Act of 1940, as amended, and as such an adviser, has the power, capacity and authority to enter into this Agreement and to perform in accordance herewith and that neither Consultant's execution of this Agreement, nor its terms, violates any obligations by which the Consultant is bound, whether arising by contract, operation of law or otherwise; and

(ii) That any and all activities which are undertaken by the Consultant for or with respect to the Client, shall be performed with professional skill and competence in accordance with the fiduciary standards of the Charter of the City of Hartford, other applicable laws and regulations, applicable provisions of the Policy Statement and otherwise as may be established by Client during the term of this Agreement. Without limiting the generality of the foregoing, Consultant represents, warrants and agrees that it will discharge its duties under this Agreement:

(a) Solely in the interests of, and for the purpose of providing benefits to, participants and beneficiaries of the OPEB consistent with the other provisions of this Agreement and applicable law; and

(b) By assisting the Client and Committee in diversifying the investments of the assets of the OPEB's investment program so as to minimize the risk of loss unless under the circumstances it is clearly prudent not to do so; and

(c) In a manner which is otherwise consistent with the legal standards which generally apply to the investment by named fiduciaries of the assets of Non-Exempt Employee Benefit Plans in the United States (as defined below).

9.2 For purposes of this Agreement, the provisions of Employee Retirement Income Security Act of 1974, as it has been and hereafter may be amended from time to time, (hereinafter, "ERISA"), and any and all regulations which have been or may hereafter be adopted thereunder, which apply to the care, custody, or investment of any assets of any Non-Exempt Employee Benefit Plan shall be deemed to apply to the OPEB, and constitute a part of the law applicable thereto, notwithstanding that the OPEB is a "governmental plan" and thus otherwise exempt from such provisions; providing, however, in the event any conflict exists between the provisions of ERISA or any such regulations on the one hand and the provisions of the laws of the State of Connecticut or the Charter or

ordinances of the City of Hartford on the other, the provisions of the latter shall prevail. For purposes of this Agreement, a "Non-Exempt Employee Benefit Plan" means any employee benefit plan as defined in 29 U.S.C. Section 1003(a) which is not exempt to ERISA's provisions regarding the care, custody or investment of plan assets pursuant to 29 U.S. C. Section 1003(b).

10. Hold-Harmless and Indemnification:

Consultant hereby agrees to indemnify and hold harmless each of the Client, Committee, OPEB and City of Hartford and its and their elected and appointed officials, officers, employees, and agents (hereinafter, individually and collectively, "Hartford, etc.") from and against any and all claims, demands, actions, causes of action, judgments, executions, attachments and other loss or liability whatsoever (hereinafter, individually and collectively, "Claims") arising from, in connection with or as a result of any act, error or omission by Consultant or any of its directors, officers, employees, agents or subcontractors (hereinafter, individually and collectively, "Consultant, etc.") which constitutes a breach of any obligations imposed on Consultant, etc. under, pursuant to or by reason of this Agreement or operation of law. Consultant's indemnification and hold harmless obligations as aforesaid shall include, but not be limited to, protecting Hartford, etc. from any and all losses and liabilities resulting from any such Claims, including, but not limited to, damage awards, the costs of settlement and reasonable attorneys' fees. Consultant's obligations to indemnify and hold harmless Client as set forth in this Section 10 shall survive the expiration or any earlier termination of this Agreement to the extent any matter or thing complained of first occurred or was continuing during the term hereof.

11. INSURANCE:

11.1 During the Term hereof, Consultant shall carry and keep in force the following types and amounts of insurance coverage at its sole cost and expense for the duration of the Contract including any and all extensions or renewals hereof:

(i) **Comprehensive General Liability Insurance** (including contractual liability coverage) insuring against damages to persons and property (including, but not limited to, loss of life) in an amount not less than a combined single limit of at least for each occurrence with a deductible not exceeding which deductible is understood to be the responsibility of the Consultant; and

(ii) **Automobile Liability Insurance** for all automobiles used by the Consultant and/or any of its officers, directors, members, partners, agents and/or employees in connection with the services provided by it hereunder, with a combined single limit of for each accident with a

deductible not exceeding which deductible is understood to be the responsibility of the Consultant; and

(iii) **Workers' Compensation Insurance** covering the Consultant's and its agent's employees at the Connecticut Statutory limit including Employers' Liability with limits of for each accident, for each disease/policy limit, and for disease for each employee, with a deductible not exceeding Ten Thousand Dollars which deductible is understood to be the responsibility of the Consultant; and

(iv) **Umbrella Liability** following form over the insurance provided under subsections (i) and (ii) above, with a limit of liability which, when combined with the primary insurance over which such excess coverage is being provided, equals at and

(v) **Professional Liability Coverage** insuring Consultant against claims for breach of its fiduciary duties to Client and/or the OPEB for an amount not less than per policy period, with a deductible that does not exceed which deductible shall be the sole responsibility of the Consultant to pay and/or indemnify. Said coverage shall be obtained on a claims made basis for the term of this Agreement and continue for two years following the completion of this Agreement at the Consultant's expense.

(vi) **Cybersecurity Insurance** insuring against financial losses and legal consequences caused by incidents like data breaches, theft, system hacking and malicious activities such as ransomware extortion payments.

11.2 All insurance required hereunder shall be effected under standard form policies by insurers of recognized responsibility which are licensed to do business in the State of Connecticut and which are rated as A-(X) or better by the latest edition of Best's Rating Guide or other recognized replacement therefor (or as otherwise approved by Client in writing on a case by case basis upon issuance of any policy and/or any renewal thereof, which approval may be withheld in the Client's sole and absolute discretion). Except as otherwise provided to the contrary in this Section, any insurance required by this Agreement may be obtained by means of any combination of primary and umbrella coverages and by endorsement and/or rider to a separate or blanket policy and/or under a blanket policy in lieu of a separate policy or policies, provided that the Consultant shall deliver a certificate of insurance of any said separate or blanket policies and/or endorsements and/or riders evidencing to the Client that the same complies in all respects with the provisions of this Agreement, and that the coverages thereunder and the protection afforded the City, Committee, Client and OPEB thereunder are at least equal to the coverages and protection which would be provided under a separate policy or policies procured solely under and by reason of this Agreement.

11.3 Except as otherwise provided in this Section, all insurances required in this Section may be carried on either an "occurrence" or a "claims made" basis, providing, however, that, should any insurance be carried on a "claims made" basis, the Consultant also shall be obligated to procure an extended reporting period thereto or a subsequent "claims made" policy with the same retroactive date as the prior "claims made" policy, as necessary to protect the City, Committee, Client and OPEB from any claims, actions or causes of action which first accrue during the term of this Agreement.

11.4 All insurance which is carried pursuant to this Section shall include provisions which deny to the insurer acquisition by subrogation of rights of recovery against the Client, and/or any of the other parties encompassed within the definition of "Hartford, etc." in Section 10 above, as and to the extent such rights have been waived by the insured party prior to occurrence of loss or injury as set fo1ih elsewhere in this paragraph, and insofar as and to the extent that such provisions may be effective without making it impossible to obtain insurance coverage from reputable companies qualified to do business in the State of Connecticut even though extra premiums may result therefrom. The Client shall be entitled to have duplicates of certificates of any policies containing such provision. The Consultant hereby waives its rights of recovery against the Client and any and all of the other parties encompassed within the definition of "Hartford, etc." in Section 10 above for loss or injury against which Client is protected by insurance containing said provisions, reserving, however, any rights with respect to any excess of loss or injury over the amount recovered by such insurance.

11.5 All insurance required to be maintained by the Consultant pursuant to this Agreement shall be at the sole expense of the Consultant. All references in this Section 11 to a "deductible" shall be deemed to mean a deductible and/or a self-insured retention, which is also the sole responsibility of the Consultant to pay or indemnify.

11.6 The Consultant agrees that it will not carry or be the beneficiary of any insurance in addition to the Professional Liability insurance (or equivalent) insuring the Consultant or any or any of its officers, directors, partners, members or employees or any other person or entity against the risks for which insurance is required to be maintained pursuant to this Section unless (1) except in the case of in the case of Workers' Compensation and Professional Liability coverages, the City, Committee, Client and OPEB are named as Additional Insureds thereunder, and (2) the insurance and insurance carriers otherwise comply with the terms of this Section.

11.7 The Consultant shall provide the Client with certificates of all insurances required to be maintained by it hereunder which, in each case, shall name the Client, Committee, City and the OPEB as additional insureds for all such insurance other than for Workers' Compensation and Professional Liability coverages. ACCORDINGLY, THE

FOLLOWING UNDERLINED WORDING MUST BE SHOWN IN THE SPACE PROVIDED FOR "COMMENTS" ON THE ACORD INSURANCE CERTIFICATE: **The City of Hartford and its City Treasurer, Committee and the OPEB are named as Additional Insureds. ATIMA.** Each certificate of insurance shall provide not less than a 30-day notice of cancellation to the Client of, or any other changes in the coverage to be provided under any of, the insurance policies evidenced thereby. The certificates of such policy or policies evidencing such coverages shall be delivered to the Client upon the execution hereof and as of thirty (30) days prior to the anniversary date hereof each year hereafter.

11.8 All insurance policies referred to in this Section shall provide that any losses thereunder shall be adjusted with the Client and that any loss thereunder shall be payable to Client as Client's interests may appear. Neither party shall not unreasonably withhold or delay its endorsement to any insurance check payable hereunder.

11.9 It is agreed between the parties hereunto that the types and amounts of insurance required to be maintained by the Consultant pursuant to this Agreement do not, in any way, limit the liability of the Consultant to the Client or any other individual or entity by virtue of its promise to indemnify them and hold them harmless so that in the event that any Claim results in a settlement or judgment in an amount in excess of the amount of insurance coverage carried by the Consultant, the Consultant shall be liable to said persons for the difference, plus all fees and expenses incurred in collecting the same, all at the Consultant's sole cost and expense.

11.10 Insurance requirements and coverages may be reviewed from time to time during the term of this Contract and all extensions and renewals hereof. The Consultant agrees to comply with any and all reasonable insurance requirements or modifications made by the Client.

11.11 Cancellation or other termination of insurance policies required by this Agreement without immediate replacement thereof may be considered a default in the terms and conditions of this Agreement. The Consultant agrees that such default may be cured by procurement of insurance on behalf of Consultant, at the Consultant's expense, and deducted from any amounts otherwise due to Consultant under this or any other contract, at the Client's option.

12. Conflict of Interest:

The Consultant hereby represents and warrants to the Client as follows:

(i) The Consultant has not paid, and shall not pay, any "finder's fees," so-called, for, as a result of or in connection with this contract or the award or performance thereof;

(ii) Without limiting the generality of the foregoing, neither Consultant nor its subcontractors has employed or retained any company or person, other than a bona fide employee working solely for the Consultant or subcontractors, to solicit or secure this Agreement, and neither the Consultant nor its subcontractors has paid or agreed to pay any company or person, other than bona fide employees working solely for the Consultant or its subcontractors, any fee, gift or any other consideration contingent upon or resulting from the award or making of this Agreement;

(iii) The services to be provided hereunder do not in any way conflict with the interests of any individual, group, business, or governmental organization with which the Consultant or its subcontractors is employed or with which the Consultant or its subcontractors has an agreement or is associated, and, in the event such a conflict arises during the term hereof, the Consultant will immediately notify the Client in writing; and

(iv) No public official, either paid or unpaid, who exercises any functions or responsibilities with respect to this Agreement during the individual's tenure, or for one (1) year thereafter, shall have any personal or financial interest, direct or indirect, in any contract between the Client or the City, on the one hand, and the Consultant or its subcontractors, on the other, any subcontract thereunder or the proceeds of either for work and/or services of the type to be performed in connection with this Agreement.

In the event any of the foregoing representations are untrue, or if any fact or circumstance occurs during the term hereof that cause any of the same to be untrue, then the Client, in addition to such other rights or remedies which may then be available to it, all of which are expressly reserved hereby, shall have the option of terminating this Agreement in accordance with Section 16.2 below.

13. Confidentiality:

The Consultant shall not (and the Consultant shall obtain its subcontractors' agreement that they will not), at any time during, or after the expiration of, the term of this Agreement, divulge to any person, or use for its or any other person's benefit, any information or fact relating to the conduct, management, or business of the Client or the City, which shall have come to the knowledge of the Consultant in the course of providing the services hereunder. The Consultant further agrees to (and the Consultant shall obtain its subcontractors' agreement that they will) treat as confidential, and to use only for the advancement of the interest of the Client, all data and other information submitted to or obtained by it in connection with the Client during the term of this Agreement. Except as may otherwise be agreed by the Client, all originals and copies of any such materials shall be returned to the Client upon termination or expiration of this Agreement or at such earlier time as is requested thereby. Notwithstanding the above, the Client understands that the Consultant will retain at least one copy of all working papers and reports for a period of

five years after the conclusion of the project, which shall nonetheless remain subject to the terms of this Agreement.

14. Events of Default and Remedies:

14.1 Events of Default:

Any of the following occurrences or acts shall constitute an Event of Default under this Agreement.

(i) Whenever Consultant shall do, or permit anything to be done, whether by action or inaction, contrary to any of the covenants, agreements, terms or provisions contained in this Agreement which on the part or behalf of Consultant are to be kept or performed; or

(ii) If any determination shall have been made by competent authority such as, but not limited to, any federal, state or local government official, or a certified public accountant, that the Consultant's or its subcontractors' management or any accounting for its or their funding, from whatever source, is improper, inadequate or illegal, as such management or accounting may relate to the Consultant's performance of this contract; or

(iii) Whenever an involuntary petition shall be filed against Consultant under any bankruptcy or insolvency law or under the reorganization provisions of any law of like import, or a receiver of Consultant or of or for the property of Consultant shall be appointed without the acquiescence of Consultant, or whenever this Agreement or the unexpired balance of the term would, by operation of law or otherwise, except for this provision, devolve upon or pass to any person, firm or corporation other than Consultant or a corporation in which Consultant may be duly merged, converted or consolidated under statutory procedure, and such circumstance under this subparagraph shall continue and shall remain undischarged or unstayed for an aggregate period of sixty (60) days (whether or not consecutive) or shall not be remedied by Consultant within sixty (60) days; or

(iv) Whenever Consultant shall make an assignment of the property of Consultant for the benefit of creditors or shall file a voluntary petition under any bankruptcy or insolvency law, or whenever any court of competent jurisdiction shall approve a petition filed by Consultant under the reorganization provisions of the United States Bankruptcy Code or under the provisions of any law of like import, or whenever a petition shall be filed by Consultant under the arrangement provisions of the United States Bankruptcy Code or under the provisions of any law of like import, or whenever Consultant shall desert or abandon the project; or

(v) If any competent authority shall have determined that the Consultant is in default

of any federal, state or local tax obligation; or

(vi) Pursuant to a Resolution passed by the Court of Common Council on September 12, 1983, if the Consultant or its subcontractors or any business entity in which Consultant or any of Consultant's partners, members or shareholders own at least twenty-five percent (25%) of its economic interests, directly or indirectly, is in default of any tax or other financial obligations which are owed to the City of Hartford, Connecticut (City). Default shall be considered to have occurred under this subsection when any payment required to be made to the City is more than thirty (30) days past due.

14.2 Election of Remedies:

If any Event of Default hereunder shall have occurred and be continuing, the Client may elect to pursue any one or more of the following remedies, in any combination or sequence:

(i) Take such action as it deems necessary, including, without limitation, the temporary withholding or reduction of payment;

(ii) Suspend program operation;

(iii) Require the Consultant to correct or cure such default to the satisfaction of the Client; and/or

(iv) Terminate this Agreement for cause in accordance with Section 16.2 hereof.

The selection of any remedy shall not prevent or stop the Client from pursuing any other remedy and shall not constitute a waiver by the Client of any other right or remedy.

15. TERMINATION OF AGREEMENT:

15.1 Termination:

"Termination", for purposes of this Agreement, shall mean the cessation, upon the effective date of termination, of the following obligations only: The Consultant's obligation to perform the services described in Section 2, Servies, of this Agreement, and the City's obligation, as described in Section 5, Compensation, of this Agreement, to pay for such services.

15.2 Termination for Cause:

Upon the occurrence of any Event of Default, as set forth in Section 15.1 hereof, the Client may terminate this Agreement by giving written notice thereof to the Consultant. The Client, at its sole discretion, shall determine when such notice shall be issued.

15.3 Termination for Program Change:

In the event the program shall be terminated or significantly changed, the Client may terminate this Agreement on thirty (30) days' written notice thereof to the Consultant.

15.4 Termination for Non-availability of Funds:

In the event the Client shall not have funds available for this program, the Client may terminate this Agreement on thirty (30) days' written notice thereof to the Consultant.

15.5 Termination at Will:

The Client may terminate this Agreement at any time by giving thirty (30) days' prior written notice thereof to the Consultant.

15.6 Payment upon Termination at Will:

In the event this agreement is terminated pursuant to any of Sections 16.3 through 16.5 above, the Client shall make full payment to the Consultant for all services performed up to and including the date of termination within sixty (60) days of such date of termination and presentation of Consultant's invoices therefor in accordance with and subject to the provisions of Section 5 above.

15.7 Payment upon Termination for Cause:

In the event this agreement is terminated pursuant to Section 16.2 above, and subject to the provisions of Section 5 (compensation) above and the other provisions of this Agreement, the Client shall make full payment to the Consultant for all services performed up to and including the date of termination within sixty (60) days of such date of termination and presentation of Consultant's invoices therefor in accordance with Section 5 above.

16. Establishment and Maintenance of Records; Audits:

The Consultant agrees to establish and maintain fiscal control and accounting procedures that assure proper accounting for all funds paid by the Client to the Consultant under this Agreement. Without limiting the generality of the foregoing, the Consultant agrees that it will maintain accurate and complete records of (i) all charges and any other claims or demands for compensation from the Client, or any other person or entity, in connection with the services provided by Consultant hereunder (including, without limitation, any claims for or arising out of any alleged breach of this Agreement), (ii) the basis (including

but not limited to, supporting documentation) therefor, and (iii) the amount and source of any and all payments or other consideration ultimately recovered in respect thereof.

Any and all records shall be generated by the Consultant in a manner which is consistent with the Client's requirements and shall be maintained for a period of not less than five (5) years from the date of final payment to the Consultant. The Consultant further shall permit (and require its Agents and advisors to permit) the Client and/or its duly authorized representatives to examine, review, and audit any records, books, or other documents of the Consultant or any and all of the Consultant's Agents and advisors relative to the above, and furnish copies thereof, when requested.

17. Subcontractors:

None of the Basic or Additional Services to be provided by Consultant hereunder may be subcontracted by Consultant without Client's written approval, which approval may be withheld by Client in its sole and absolute discretion. Further, any such approval which may be granted by Client may be conditioned upon Consultant's awarding any such subcontract upon such terms and/or in accordance with such procedures as may be stipulated by Client; providing that any work which may be required to be performed by Consultant to satisfy any such condition shall be deemed to be an Additional Service for which Consultant shall be entitled to be paid as if the same were ordered by Client pursuant to Sections 2 and 5 above.

18. Anti-Discrimination and Affirmative Action:

The Consultant agrees to abide by the provisions of Section 2-679 *et seq.* of the City of Hartford Municipal Code (as applicable), Executive Orders Number 3 and 17 of the State of Connecticut; and Presidential Executive Orders Number 11246, 11375 and 11063. In carrying out this program, the Consultant shall not discriminate against any employee or applicant for employment because of race, color, religion, age, sex, national origin, mental disability, physical handicap, marital status or sexual orientation.

The Consultant shall take affirmative action to ensure that any and all applicants for employment with the Consultant are employed, and that employees of the Consultant are treated during employment, without regard to their race, color, religion, age, sex, national origin, mental disability, physical handicap, marital status or sexual orientation. Such action shall include, but not be limited to the following: employment, upgrading, demotion, transfer, recruitment, recruitment advertising, layoff, termination, rates of pay and other forms of compensation, and selection for training, including apprenticeship. The Consultant shall post in conspicuous places, available to employees and applicants for employment, notices to be provided by the federal government, setting forth the provisions of the non-discrimination clause.

The Consultant shall state that all qualified applicants for employment by or with Consultant shall receive consideration for employment without regard to race, color,

religion, age, sex, national origin, mental disability, physical handicap, marital status or sexual orientation. The Consultant further agrees to abide by the terms and conditions contained in the City of Hartford's *Equal Employment Opportunity Questionnaire for Vendors and Contractors.*

19. Americans with Disabilities Act (ADA) Of 1990:

The Consultant agrees to abide by the provisions of the Americans with Disabilities Act (ADA) of 1990; Public Law 101-336, as applicable.

In compliance with this law, the Consultant shall not discriminate against a qualified individual with a disability because of the disability of such individual in regard to job application procedures, the hiring, advancement, or discharge of employees, employee compensation, job training, and other terms, conditions, and privileges of employment. No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of services, programs, or activities of the Consultant, or be subjected to discrimination by the Consultant. No individual shall be discriminated against on the basis of disability in the full and equal enjoyment of the goods, services, facilities, privileges, advantages or accommodations provided by the Consultant.

Any television public service announcement that is produced or funded in whole or in part under this Contract shall include closed captioning of the verbal content of such announcement. The Consultant shall not discriminate against any individual because such individual has opposed any act or practice made unlawful by this Act or because such individual made a charge, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing under this Act.

The Consultant shall not permit coercion, intimidation, threatening, or interfere with any individual in the exercise or enjoyment of, or on account of his or her having exercised or enjoyed, or on account of his or her having aided or encouraged any other individual in the exercise or enjoyment of, any right granted or protected by this Act.

20. Taxpayer Identification Number:

The Internal Revenue Service Form W-9, *Request for Taxpayer Identification Number and Certification* as submitted by the Consultant, is hereby made a part of this Contract and is incorporated herein by reference. It is understood and agreed that the Client shall use the number as listed on the IRS Form W-9 to report any and all compensation paid to the Consultant under this Agreement. It is further understood and agreed that neither the Client, Committee nor City shall be liable for inaccurate information contained on said IRS Form W-9.

21. Delinquency in Obligations:

The Consultant hereby agrees that throughout the period of the contract, all taxes, contractual obligations and audit responsibilities owed to the City shall be and remain current.

22. Non-Waiver:

Any failure by the Client or the Consultant to insist upon the strict performance by the other of any of the terms and provisions hereof shall not constitute a waiver of that or any other of said other party's obligations hereunder, and each party hereto, notwithstanding any such failure, shall have the right thereafter to insist upon the strict performance by the other, of any and all of the terms and provisions of the Agreement. Further, the payment by Client to Consultant of any amounts hereunder shall not preclude Client from later questioning the appropriateness of Client's having made any such payment nor, to the extent any such payment was not properly due and payable hereunder, prevent Client from offsetting the amount of any such improper payment against any amounts which are then (or thereafter come) due to Consultant under or by reason of this Agreement or otherwise (and/or pursuing such other remedies to recover such sums), all of which the parties hereby explicitly agree Client shall be entitled to do at any time during or after the expiration (or earlier termination) of this Agreement.

23. Amendment:

This Agreement may be amended only by written instrument executed by the parties hereto. The Client and the Consultant may require changes in the Scope of Services to be performed hereunder. However, such changes shall only be those which are mutually agreed upon by and between the Client and the Consultant that are incorporated in written amendments to this Agreement.

24. Disclaimer or Agency or Third Party Beneficiary Rights:

In no event shall anything in this Agreement be deemed to confer upon any person or entity agency status or third party beneficiary rights against the Client.

25. Non-Assignability by Consultant:

This Agreement shall be personal as respects the obligations of Consultant and, accordingly, shall not be transferable or assignable by the Consultant, by operation of law or otherwise, without prior written consent of the Client, which consent may be withheld in its sole and absolute discretion. Without limiting the foregoing, the acquisition of a controlling interest in Consultant's stock by, or merger of Consultant with, another person

or entity, (directly or indirectly) shall be deemed to be a transfer or assignment of this Agreement for which Client's approval is required hereunder.

The Consultant shall give the Client prompt written notice whenever Consultant anticipates merging, associating or being taken over by another firm, consultant or other entity. Such notice shall be provided to Client at least one hundred eighty (180) days prior to the date on which such action is to take place. Consultant shall provide Client with all information concerning any such transaction as may reasonably be requested by Client in order for Client to determine whether to continue to do business with Consultant hereunder. Any failure buy Consultant to comply with the provisions of this subparagraph shall be deemed to constitute a default under this Agreement.

26. Severability:

If any provision of this Agreement is held invalid, the remainder of this Agreement shall not be affected thereby if such remainder would then continue to conform to the terms and requirements of applicable law.

27. Cumulative Remedies:

All rights and remedies exercisable by of the Client hereunder shall be cumulative and the exercise or beginning of the exercise by the Client of any of its rights or remedies hereunder shall not preclude the Client from exercising any other right or remedy granted hereunder or permitted by law.

28. Gender/Number/Title/Construction:

Words of any gender used in this Agreement shall be held and construed to include any other gender, and words in the singular shall be held and construed to include the plural, unless the Agreement requires otherwise. In the event of any discrepancy or conflict between the name and title of any person referred to in this Agreement, the title shall prevail.

29. Notices:

All notices, demands, instructions, requests, advise, consents, waivers, approvals and other communications shall be in writing and shall be deemed given (i) upon the hand delivery thereof during the recipient's normal business hours, provided a receipt is obtained, or (ii) upon the earlier of receipt or the third Business Day after posting thereof by certified mail, return receipt requested, postage charges prepaid, or (iii) upon the next Business Day following delivery thereof to a reliable and nationally recognized air freight delivery service such as Federal Express or express mail, freight charges prepaid, or (iv) upon

delivery during the recipient's normal business hours if by telecopier transmissions, provided, in each of any of the four cases noted above, a receipt is obtained, addressed or delivered to the respective parties at their respective addresses or telecopier numbers set forth below (or at such other addresses or telecopier numbers designated by any party at any time by notice to the other party in the manner set forth below:

As to the Client:

As to the Consultant:

30. Merger:

This Agreement and its exhibits referenced herein and attached hereto, contains the entire understanding between the parties hereto and supersedes any and all prior understandings, negotiations, and agreements, whether written or oral, between them respecting the subject matter hereof.

31. Governing Law:

This Agreement shall be construed in accordance with applicable federal law and, to the extent not pre-empted by them, the laws of the State of Connecticut (without reference to its conflict of law provisions) and the Ordinances and Charter of the City of Hartford.

EXHIBIT A

FUNDING AND INVESTMENT POLICY STATEMENT

https://www.hartfordcitytreasurer.org/images/pdf/OPEB-IPS-amended-2023-06-30.pdf

SCHEDULE 1

Compensation for Additional Services

Additional consulting as described in the agreement is available to the Client at a rate of between

From time-to-time the Client may utilize the services of other individuals working for the Consultant. In these cases, the same professional rates as above will apply.

Consultant shall notify Client in writing of the name and position of all individuals who may be assigned to any project involving additional services and the hourly rate therefore prior to commencing any work on the same. Any and all bills for additional services shall indicate the number of hours each such individual has provided any services to the Client each week during the period covered by such invoice as well as a brief description of the activities performed thereby. Consultant shall keep detail records supporting all such invoices which shall be available for audit by Client as provided in Section 17 of the Agreement.

Consultant shall be reimbursed for travel expenses (if any) associated with providing any such additional services as and to the extent provided in Section 5 of the Agreement.